

Madawaska/Edmundston International Bridge and Border Crossing Feasibility and Planning Study

Contractor Information Guide

I created this document from scratch. I was given direction for the research, but all the work is essentially mine. I researched all of the websites and regulations, developed the layout to client specifications, wrote the copy, and linked all of the webpages. There was input after I created the initial draft to add or remove certain details and make sure that all the relevant information was covered. This document became an appendix to the Final Feasibility Study document.

Handout from Public Meeting in June of 2017

For this document, I was responsible for creating the document, start to finish, from information already collected for the Feasibility Study draft that was being developed concurrently with the preparation for the "Public Meeting #1" in the Town of Madawaska in June of 2017. I created the layout in Adobe InDesign, wrote and assembled the copy, and developed the Regional Context Map (using Adobe Illustrator) from GIS files used for the Feasibility Study document. I was also responsible for the final quality check and proofread/copy edit of the handout and any other materials for the Public Meeting #1 (i.e. posters, sign-in sheets, comment cards, PowerPoint presentation, etc...)

Final SEIS

I included the Executive Summary of the Final SEIS and Section 4(f) Evaluation, the whole document is approximately 500 pages. I developed the Executive Summary from the final copy of the document, collecting the relevant information and meeting the requirements of the National Environmental Policy Act (NEPA). In this document I was responsible for: the layout in InDesign; creation of many of the maps and graphics using Photoshop, Illustrator, and raw ArcGIS files; creating the Executive Summary and Abstract from the body of the report; final editing and proofing; and ensuring all references were accurate, up to date, and used properly.

The Madawaska/Edmundston International Bridge and Border Crossing project began in the spring of 2017 and continued through the Feasibility Study to a Draft Supplemental Environmental Impact Statement (SEIS) and Programmatic Section 4(f) Evaluation (2018), a Final SEIS and Programmatic Section 4(f) Evaluation (2019), and a Record of Decision (ROD) (2020).

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*Madawaska/Edmundston International
Bridge and Border Crossing*

May 2018

Contractor Information Guide

Madawaska, Maine to Edmundston, New Brunswick International Bridge and Border Crossing

Maine Department of Transportation &
New Brunswick Department of
Transportation and Infrastructure

in coordination with the
Canada Border Services Agency,
Public Services and Procurement Canada,
U.S. General Services Administration,
and U.S. Customs and Border Protection

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ACRONYMS

AMPS	Administrative Monetary Penalty System	KRT	Korea Tariff
AUT	Australia Tariff	LDCT	Least Developed Country Tariff
BIS	Business Information Service	LMIA	Labour Market Impact Assessment
BN	Business Number	LPOE	Land Port of Entry
BRO	Business Registration Online	MFN	Most-Favoured-Nation
CAED	Canadian Automated Export Declaration	MaineDOT	Maine Department of Transportation
CBP	U.S. Customs and Border Protection	NBDTI	New Brunswick Department of Transportation and Infrastructure
CBSA	Canada Border Services Agency	MT	Mexico Tariff
CCCT	Commonwealth Caribbean Countries Tariff	MUST	Mexico-United States Tariff
CGP	Controlled Goods Program	NAFTA	North American Free Trade Agreement
CIAT	Canada-Israel Agreement Tariff	NDR	No Declaration Required
CIC	Citizenship and Immigration Canada	NT	Norway Tariff
COLT	Columbia Tariff	NZT	New Zealand Tariff
CRA	Canada Revenue Agency	OGD	Other Government Departments and Agencies
CRT	Canada-Costa Rica Tariff	OHS	Occupational Health and Safety
CT	Chile Tariff	ORS	Office of the Revisor of Statutes
CTA	Canadian Transport Agency	OSH Act	Occupational Safety and Health Act of 1970
DPA	Defence Production Act	OSHA	U.S. Occupational Safety and Health Administration
EDI	Electronic Data Interchange	PAT	Panama Tariff
ESDC	Employment and Social Development Canada	POE	Port of Entry
GPT	General Preferential Tariff	PT	Peru Tariff
GSA	General Services Administration	PSPC	Public Services and Procurement Canada
GST	Goods and Services Tax	SIMA	Special Import Measures Act
HNT	Honduras Tariff	SLT	Switzerland-Liechtenstein Tariff
HRSDC	Human Resources and Skills Development Canada	TFW	Temporary Foreign Worker
HS	Harmonized System	TH	Trunk Highway
HST	Harmonized Sales Tax	USCIS	U.S. Citizenship and Immigration Services
IRCC	Immigration, Refugees and Citizenship Canada	UST	United States Tariff
IT	Iceland Tariff	WSIB	Workplace Safety and Insurance Board
JT	Jordan Tariff		

I. INTRODUCTION

The Maine Department of Transportation (MaineDOT) and the New Brunswick Department of Transportation and Infrastructure (NBDTI), in coordination with the Canada Border Services Agency (CBSA), Public Services and Procurement Canada (PSPC), U.S. General Services Administration (GSA), and U.S. Customs and Border Protection (CBP), are continuing the planning and design for the replacement of the Madawaska/ Edmundston International Bridge Crossing on Bridge Street between the Town of Madawaska and the City of Edmundston. With construction planned for 2020 (pending required approvals), MaineDOT and NBDTI will be soliciting a contractor to replace the International Bridge Crossing over the Saint John River.

The construction of the new international bridge over a waterway between Maine and New Brunswick is a complex undertaking and requires great consideration and compliance with many laws, regulations, and rules associated with the movement of goods and people across the international border.

This *Contractor Information Guide* provides a general overview of some of the requirements associated with the movement of goods and people across the international border and sources for additional information that may help inform contractors when preparing to bid on this project. This *Guide* should only be viewed as a starting point for gathering information on the requirements associated with the movement of goods and people across the international border. The purpose of this *Guide* is simply to inform and raise awareness of these requirements and the complexities involved with the construction of this international project.

Although this *Guide* mentions laws, regulations, and rules associated with the movement of goods and people across the international border and provides web sites and other sources of information, it is not intended to function as legal research, or an interpretation of these laws, regulations, and rules, nor is it intended to serve as legal advice.

MaineDOT and NBDTI strongly suggest contractors consult a qualified attorney when preparing to bid. Reliance on any information contained in this *Guide* must be done at the user's

own risk and cannot be used in support of a future claim against the MaineDOT and NBDTI. MaineDOT and NBDTI assume no responsibility for the accuracy and reliability of the information in this *Guide*. MaineDOT and NBDTI will not be liable for any losses caused by reliance on the information in this *Guide*.

Resources:

- [Madawaska/Edmundston International Bridge and Border Crossing Feasibility and Planning Study Website](#)

II. WORKING IN THE UNITED STATES

Port of Entry Operations

U.S. Customs and Border Protection (CBP) has a complex mission at Land Ports of Entry (LPOE) with broad law enforcement authority tied to screening all foreign visitors, returning American citizens, and imported cargo that enters the U.S. LPOE operations. CBP is authorized and expected to: conduct immigration inspections of people entering the country including visitors, Legal Permanent Residents, and U.S. citizens; as well as examine and secure all cargo and agricultural products entering the U.S. (CBP, 2016).

Resources:

- [Immigration Inspection Program](#)
- [Cargo Security Examinations](#)
- [Protecting Agriculture](#)
- [At Ports of Entry](#)

Immigration for Foreign Workers

To visit the United States for business purposes, individuals may need to obtain a visa as a temporary visitor for business (B-1 visa), unless qualifying for admission under another visa program or without a visa under the Visa Waiver Program (USCIS, 2015).

A contractor who desires Canadian citizens to work in the United States would have to apply for and receive approval from U.S. Citizenship and Immigration Services (USCIS, 2015).

Employers must verify that individuals whom they plan to employ in the United States are authorized to accept employment in the United States and generally must file a non-immigrant

petition on the individual's behalf with USCIS¹. An H-1B visa – workers in a specialty occupation – may be the appropriate nonimmigrant classification for a temporary worker (USCIS, 2015).

Resources:

- [B-1 Temporary Business Visitor](#)
- [Temporary \(Nonimmigrant\) Workers](#)

Taxes

Maine generally imposes an income tax on all individuals that have Maine-source income. As of 2017 the income tax rates are graduated, with rates ranging from 5.8% to 7.15% (MRS, 2017).

Maine imposes an income tax on all entities organized as corporations and that have Maine-source income. As of 2017 the corporate income tax is graduated, with rates ranging from 3.5% (for income up to \$25,000) to 8.93% (for income in excess of \$250,000). The tax generally does not apply to S corporations unless the corporation has federal taxable income at the corporate level (MRS, 2017).

Contractors or subcontractors may be required to pay sales or use tax on the cost of all materials, supplies and equipment purchased in the U.S. Goods, materials, and services procured in Maine may be subject to the state's sales and use tax (MRS, 2017). Goods and services procured in states other than Maine, would be subject to the sales tax rates of those states, and not additionally subjected to Maine sales tax.

Resources:

- [Maine Revenue Services](#)

Worker Safety

The U.S. Department of Labor, Occupational Safety and Health Administration (OSHA) assures safe and healthful working conditions for working men and women by setting and enforcing standards and by providing training, outreach, education, and

¹ Only a few nonimmigrant classifications allow you to obtain permission to work in the United States without an employer having first filed a petition on your behalf. Such classifications include the nonimmigrant E-1, E-2, E-3 and TN classifications, as well as, in certain instances, the F-1, M-1 student, and J-1 exchange visitor classifications (USCIS, 2016).

assistance (U.S. Department of Labor, 2016). The Occupational Safety and Health Act of 1970 (OSH Act) was passed to prevent workers from being killed or seriously harmed at work. Under the OSH Act, employers have the responsibility to provide a safe workplace (U.S Department of Labor, 2016).

Maine

Safety in Maine is governed by the Maine Department of Labor, Occupational Safety Rules and Regulations Board, with rules published in Maine Revised Statutes, Title 26, Chapter 6 (Maine Legislature, 2017).

Resources:

- [Occupational Safety and Health Administration OSHA](#)
- [OSHA At-A-Glance](#)
- [Occupational Safety Rules and Regulations Board Statutes](#)
- [Maine Department of Labor](#)

III. WORKING IN CANADA

Port of Entry Operations

Travelers arriving in Canada are obligated by Canadian law to present themselves to a border services officer, respond truthfully to all questions, and accurately report their goods. Travelers must follow the signs to Primary Inspection where a border services officer would examine identification and other travel documents, and take verbal declarations of goods being brought into Canada (CBSA, 2016).

Resources:

- [What to Expect at the \[Canadian\] Border](#)

Taxes

Income Tax Rates for Individuals

New Brunswick imposes an income tax on all federally-defined New Brunswick taxable income. The income tax rates are graduated, with rates ranging from 9.68% to 20.3% (CRA, 2017a).

Corporation Income Tax

New Brunswick imposes an income tax on all entities organized as corporations and that have New Brunswick-sourced income. Generally, provinces in Canada have two corporation income tax

rates – a lower rate and a higher rate. The lower rate applies to the income eligible for the federal small business deduction, while the higher rate applies to all other income. In New Brunswick, the lower rate is 3.5%, and the higher rate is 14%. The income eligible for the lower rate is determined using the New Brunswick business limit of \$500,000 (CRA, 2017a).

Importation of Goods

Goods, materials, and supplies imported during the construction of the International Bridge may enter under two scenarios: 1) permanent importation to be brought into the country and permanently installed in the Bridge, or 2) temporary importation, such as machinery and equipment.

Generally, a formal entry would be required by the Canada Border Services Agency (CBSA) to account for the importation of these goods and Customs duties and Federal taxes may be applicable.

Permanent Importation of Goods

Goods that would be permanently imported such as materials brought into and used in the construction of the bridge would require the presentation of accounting documentation to CBSA. The importer or their Customs Broker can complete the accounting documentation, which would declare the correct classification and tariff treatment applicable, both of which would determine the rate of duty to be applied.

The CBSA has a [step-by-step guide](#) with an overview of the commercial importing process for businesses importing goods into Canada. It is intended to complement and not replace existing regulations, acts, and references detailed in [Memoranda Series D1 to D22](#) dated June 2016 (CBSA, 2017a). The steps for businesses importing goods into Canada include:

Preparing to Import

1. Obtain a Business Number

Before importing commercial goods into Canada, contractors would need to obtain a Business Number (BN) issued by the Canada Revenue Agency (CRA) for an import/export account. This import/export account is free of charge and can usually be obtained in a few minutes. To register for a BN, contractors can

either call the CRA's Business Window at 1-800-959-5525 or visit the CRA's Business Registration Online (BRO) (CBSA, 2015).

Resources:

- [Business Registration Online \(BRO\)](#)

2. Identify goods to be imported

Contractors should gather information about the goods to be imported. Obtain descriptive literature, product composition information and, whenever possible, product samples. This information would be crucial when determining the tariff classification of the goods to be imported. The tariff clarification number would be used to determine the rate of duty that would be applied to the goods (CBSA, 2015).

3. Determine if a licensed customs broker would be used

The CBSA licenses customs brokers to carry out customs-related responsibilities to clear goods across the Canadian border. A broker's service typically includes:

- Obtaining the release of the imported goods;
- Paying duties;
- Obtaining, preparing, and presenting or transmitting documents or data;
- Maintaining records; and
- Responding to CBSA concerns after payment (CBSA, 2015).

Contractors can prepare their own release and accounting documentation and transact business directly with the CBSA, or contractors can authorize a Licensed Customs Broker to act as their agent to transact business. It is important to remember that contractors are ultimately responsible for the accounting documentation, payment of duties and taxes, and subsequent corrections such as re-determination of classification, origin, and valuation, even if they use the services of a broker (CBSA, 2015).

Consult the CBSA's licensed customs broker list should you wish to use the services of a broker.

Resources:

- [List of Licensed Customs Brokers](#)

- [Licensed Customs Brokers](#)

4. Determine the country of origin for the goods to be imported

Contractors must identify the country of origin for goods. It is important to remember that this does not simply mean the country from which the product was shipped. It may also include where individual parts of the product are from, as well as where it was assembled into the final product (CBSA, 2015).

Requirements for proof of origin can be found in Memorandum D11-4-2, *Proof of Origin* (CBSA, 2015).

Resources:

- [Memorandum D11-4-2, Proof of Origin](#)

5. Ensure the goods to be imported are permitted into Canada

Certain goods are not allowed to be imported into Canada. For more information on prohibited products, contractors should consult Memoranda Series D9, *Prohibited Importations* (CBSA, 2015).

Resources:

- [Memoranda Series D9, Prohibited Importations](#)

6. Determine whether the goods to be imported are subject to any permits, restrictions, or regulations by the CBSA or other government departments

Many goods are subject to the requirements of other government departments and agencies (OGDs) and may require permits, certificates, and/or inspection. The CBSA is responsible for administering the legislated import requirements on behalf of other government departments. More than one government department may have a role to play in the requirements and regulations pertaining to the importation of certain goods. (CBSA, 2015).

Contractors would need to determine if goods to be imported are subject to regulations, restrictions, permits, or other requirements. The CBSA's Other Government Departments and Agencies: Reference List for Importers provides a list of some of the most commonly imported commodities that may require permits and/or certificates. More comprehensive information can be

found in Memoranda Series D19, *Acts and Regulations of Other Government Departments* (CBSA, 2015).

The CBSA requires certain goods to be clearly marked with the country of origin. More information on marking requirements is found in Memorandum D11-3-1, *Marking of Imported Goods* (CBSA, 2015).

Some goods are subject to measures under the *Special Import Measures Act* (SIMA). The special measures available under the SIMA include anti-dumping duties, countervailing duties, and undertakings. Consult the monthly index of products subject to SIMA and refer to Memoranda Series D14, *Special Imports Measures Act* (CBSA, 2015).

Before certain goods are imported into Canada, contractors must determine whether they are subject to domestic controls. Under the *Defence Production Act* (DPA) and the *Controlled Goods Regulations*, any person who examines, possesses or transfers controlled goods domestically is legally required to register with Public Services and Procurement Canada's (PSPC) Controlled Goods Program (CGP). A list of controlled items in Canada is available in the Schedule to the DPA and to further establish if the goods contractors may be importing are controlled in Canada, refer to PSPC's *Guide to the New Schedule to the Defence Production Act* (CBSA, 2015).

Resources:

- [Other Government Departments and Agencies: Reference List for Importers](#)
- [Memoranda Series D19, Acts and Regulations of Other Government Departments](#)
- [Memorandum D11-3-1, Marking of Imported Goods](#)
- [Special Import Measures Act \(SIMA\)](#)
- [SIMA - Measures in Force](#)
- [Memoranda Series D14, Special Imports Measures Act](#)
- [Schedule to the Defence Production Act](#)
- [Guide to the New Schedule to the Defence Production Act](#)

Classifying your goods

7. Determine the 10-digit tariff classification number for each item to be imported

Once contractors are sure that goods may be imported, contractors would need to determine the correct tariff classification number.

These numbers, along with the country of origin, are used to determine the rate of duty contractors must pay when importing (CBSA, 2015).

Most trading countries, including Canada, the United States, China, and India, use the Harmonized System (HS) as the basis of their classifications systems. The first six digits are a common identifier across countries using the HS for a particular good. The following four digits are unique to Canada and are used to establish the duty rates and for statistical purposes (CBSA, 2015). Tariff classification numbers can be determined by:

- Consulting the *Customs Tariff*;
- Contacting the Border Information Service (BIS);
- Requesting an advance ruling on a tariff classification by mail from a CBSA trade office.

Resources:

- [Harmonized Commodity Description and Coding System \(HS\)](#)
- [Customs Tariff](#)
- [Border Information Service \(BIS\)](#)
- [CBSA Trade Operations Divisions](#)
- [Memorandum D10-13-1, Classification of Goods](#)

Determining duties and taxes

8. Determine the applicable tariff treatment and rate of duty.

Once contractors have determined the correct tariff classification number, contractors would need to establish the tariff treatment that applies to goods before the rate of duty can be determined. When viewing the *Customs Tariff* Schedule, contractors should note two columns on the right hand side entitled "Most-Favoured-Nation (MFN) Tariff" and "Applicable Preferential Tariffs."

Most-Favoured-Nation (MFN) Tariff: Goods originating from all countries, except North Korea, are entitled to use the rate of duty specified under this column.

Applicable Preferential Tariffs: This column lists reduced rates of duty for goods based on trade agreements including:

- North American Free Trade Agreement (NAFTA): United States Tariff (UST), Mexico Tariff (MT), Mexico-United States Tariff (MUST);

- Chile Tariff (CT);
- Canada-Israel Agreement Tariff (CIAT);
- Canada-Costa Rica Tariff (CRT);
- Canada-European Free Trade Association Free Trade Agreement: Iceland Tariff (IT), Norway Tariff (NT), Switzerland-Liechtenstein Tariff (SLT);
- Canada-Peru Free Trade Agreement: Peru Tariff (PT);
- Canada-Colombia Free Trade Agreement: Colombia Tariff (COLT);
- Canada-Jordan Free Trade Agreement: Jordan Tariff (JT);
- Canada-Panama Free Trade Agreement: Panama Tariff (PAT);
- Canada-Honduras Free Trade Agreement: Honduras Tariff (HNT); and
- Canada-Korea Free Trade Agreement: Korea Tariff (KRT).

Or rates of duty based on special tariff provisions such as the:

- General Preferential Tariff (GPT);
- Least Developed Country Tariff (LDCT);
- Commonwealth Caribbean Countries Tariff (CCCT);
- Australia Tariff (AUT); and
- New Zealand Tariff (NZT).

The requirements of the particular trade agreement or tariff treatment must be satisfied to benefit from a preferential duty rate. Contractors must possess proof of origin for the specific trade agreement at the time of importation. A complete list of countries eligible for the above tariff treatments can be found at the beginning of the *Customs Tariff*. General tariff information and guidelines can be found in Memorandum D11, *General Tariff Information* (CBSA, 2015).

Resources:

- [Customs Tariff](#)
- [Rules of Origin Regarding the Most-Favoured-Nation \(MFN\) Tariff](#)
- [Memorandum D11, General Tariff Information](#)
- [Memorandum D11-4-2, Proof of Origin of Imported Goods](#)

9. Determine if goods are subject to the goods and services tax (GST), excise tax or excise duty

The GST is payable on most goods at the time of importation under Part IX, Division III of the *Excise Tax Act*. Tax exemption codes to use on the Canada Customs Coding Form B3, are listed in Memorandum D17-1-10, *Coding of Customs Accounting Documents*, Appendix H, List 4 (GST Status Codes) and List 7 (Excise Tax Exemption Codes). If goods are tax exempt, contractors must quote the tax exemption code on import documentation (CBSA, 2015).

Resources:

- [Excise Tax Act, Part IX, Division III](#)
- [Canada Customs Coding Form B3](#)
- [Memorandum D17-1-10, Coding of Customs Accounting Documents](#)
- [Canada Revenue Agency \(CRA\)](#)

10. Determine the value of the goods you are importing

Once the tariff classification number and the tariff treatment of imported goods is determined, the value for duty can be determined. In most cases, the value for duty is the amount paid for the goods. The declaration of value for duty should be supported by receipts or sales invoices. Documents must include a complete description of the goods, the selling price and conditions, and terms of the sale. The value for duty must be in Canadian funds (CBSA, 2015).

The *Customs Act* identifies six legislated methods of valuation. The method applicable to imported goods is the first method, considered in sequential order, for which all requirements of the method can be satisfied. For example, most goods are imported to Canada as a result of a sale for export to a purchaser in Canada. The value for duty would be based on the price paid or payable for the goods in that sale, if all the requirements of the transaction value method are met (CBSA, 2015).

Resources:

- [Memorandum D1-4-1, CBSA Invoice Requirements](#)
- [Customs Act](#)
- [Memoranda Series D13, Valuation](#)

11. Estimate in advance how much duty and taxes would be required

To convert the value into Canadian dollars using the exchange rate from the date of direct shipment (the date the goods began their direct and continuous journey to a specific destination in Canada). To obtain the proper exchange rate, call the BIS (CBSA, 2015).

Resources:

- [Memorandum D13-1-2, Direct Shipment of Goods](#)
- [Border Information Service \(BIS\)](#)

Shipping, examining, and reporting your goods

12. Select a method of shipping

Place orders with the vendor, shipper, or exporter and identify the mode of shipping that would be used (highway, marine, rail, air); then determine the CBSA office where goods would be released. Most shipments are released at the CBSA office where they arrive in Canada; however, if contractors use a CBSA bonded carrier, they may choose another inland service point (CBSA, 2015).

Resources:

- [Directory of CBSA Offices and Services](#)
- [Commercial Carrier and Freight Forwarder Identification and Eligibility - Highway Carriers](#)

13. Report goods

Commercial goods must be reported to the CBSA. Shipments may be monitored for compliance with CBSA requirements or other government department regulations. This is done without charge; however, if there is a need to hire a transport company to move or handle your goods, you may receive an invoice from that company for their services (CBSA, 2015).

Getting goods released

14. Obtain release of goods

There are two options for releasing goods: full accounting and payment of duties and release of goods prior to payment of duties. With both options, contractors may prepare the release and accounting documents or use a licensed customs broker. Regardless of method used, the CBSA would assign each shipment a 14-digit transaction number to identify your goods throughout the clearance process (CBSA, 2015).

Resources:

- [Licensed Customs Brokers](#)
- [Memorandum D17-1-5, *Registration, Accounting and Payment for Commercial Goods*](#)

After goods are released

15. Adjusting errors in the accounting information submitted

If contractors make an error in the accounting information, and the CBSA has not already made the corrections, contractors are required to correct the information within 90 days after discovery of the error. If a change in the accounting information results in a refund of duties or taxes paid, an application for a refund can be filed (in most cases up to four years from the date the goods were accounted) (CBSA, 2015).

Resources:

- [Memorandum D17-2-1, *Coding of Adjustment Request Forms*](#)
- [Updated D17-2-1 – B2 Adjustment Request](#)
- [Memorandum D11-6-6, *“Reason to Believe” and Self-Adjustments to Declarations of Origin, Tariff Classification, and Value for Duty*](#)
- [Memorandum D6-2-3, *Refund of Duties*](#)

16. Keep records of imports

Contractors must keep records of importations; this includes information relating to the quantities received, price paid, the country of origin, vendor, product, and all other related information (CBSA, 2015).

Resources:

- [Memorandum D17-1-21, *Maintenance of Records in Canada by Importers*](#)

Temporary Importation of Goods

There is provision in the Customs Tariff for goods imported temporarily, providing duty relief when the imported goods are not for sale, lease or for further processing. Therefore equipment (such as cranes, backhoes, bull dozers, etc.) may enter under the provisions of the Temporary Importation Regulations and receive full duty relief (CBSA, 2017d).

Generally, there is no provision for relief of GST and therefore the customs accounting documentation would account for GST on the

full value of the machinery being imported. The contractor may be required to self-assess the provincial component of the Harmonized Sales Tax (HST).

Resources:

- [Temporary Importation of Conveyances](#)

Temporary Importation of Vessels such as Barges

The CBSA, in association with the Canadian Transportation Agency (CTA) and Transport Canada, is responsible for administering a temporary admission program for commercial vessels. The program provides for the temporary, short-term market needs that cannot be met from existing fleet capacity in Canada. Under the program, foreign and non-duty paid vessel operators may apply (through a representative Canadian resident) to operate these vessels temporarily in Canada under a *Coasting Trade license* (Form C48), and on a duty-reduced basis when no suitable Canadian vessel is available to carry out a specific movement or provide a particular service.

The CTA is responsible for determining whether a suitable Canadian vessel is available to perform the coasting trade activity specified in the application. Once the CTA determines that no suitable Canadian vessel is available, the CBSA issues a letter of authority allowing the applicant to complete the process for a *Coasting Trade License* and start operations.

Reduction or Removal of Duties

Duties reduction and removal provisions for vessels are found in the *Vessel Duties Reduction or Removal Regulations*. These Regulations are set under an authority in a supplementary note to Chapter 89 of the *Customs Tariff* (CBSA 2016d).

Duty and tax relief may be available if vessels are temporarily imported for repair or other work. Tariff item No. 9993.00.00 of the Schedule to the *Customs Tariff* and Memorandum D8-1-1, *Amendments to Temporary Importation (Tariff Item No. 9993.00.00) Regulations*, provide information regarding duty relief for vessels temporarily admitted to Canada for repair or alteration (CBSA 2016d).

If vessels are temporarily imported into Canada for further processing, customs duty relief may be available through the

CBSA Duty Deferral program. Further information is available in Memoranda D7-4-1, *Duties Relief Program*, D7-4-2, *Duty Drawback Program*, and D7-4-3, *NAFTA Requirements for the Duty Drawback and the Duties Relief Programs* (CBSA 2016d).

Tariff item No. 9803.00.00 provides duty and tax relief for non-residents' conveyances and baggage, including non-commercial non-resident vessels imported for leisure use. For additional information see D2-1-1, *Temporary Importation of Baggage and Conveyances by Non-residents* (CBSA 2016d).

For vessels temporarily admitted to the coasting trade, the *Vessel Duties Reduction or Removal Regulations* provide for the reduction or removal of duties that apply under the *Customs Tariff* when certain terms and conditions are met (CBSA 2016d).

The duties reduction for vessels authorized to operate temporarily in the coasting trade are under what is referred to as the “1/120 provision.” The exceptions to the above are vessels authorized to operate in the coasting trade of Canada in an “intercoastal movement” on condition that no suitable Canadian vessel is available. In such cases, duties on the vessel would be reduced to zero for that movement (CBSA 2016d).

In addition, the *Vessel Duties Reduction or Removal Regulations*, under specified conditions, reduce or remove duties that apply to certain vessels returning to Canada after being repaired or modified. These regulations also provide tax relief for vessels temporarily imported for storage (tariff item No 9993.00.00 provides customs duty relief for such vessels) (CBSA 2016d).

Resources:

- [*Vessel Duties Reduction or Removal Regulations*](#)
- [*Customs Tariff*](#)
- [*Memorandum D8-1-1, Amendments to Temporary Importation \(Tariff Item No. 9993.00.00\) Regulations*](#)
- [*D7-4-1, Duties Relief Program*](#)
- [*D7-4-2, Duty Drawback Program*](#)
- [*D7-4-3, NAFTA Requirements for the Duty Drawback and the Duties Relief Programs*](#)
- [*D2-1-1, Temporary Importation of Baggage and Conveyances by Non-residents*](#)

Export of Goods

Goods, materials, and supplies exported from Canada during the construction of the International Bridge falls under the jurisdiction of the CBSA. The CBSA has a [step-by-step guide](#) with an overview of the commercial exporting process for businesses exporting goods from Canada. It is intended to complement and not replace existing regulations, acts, and references detailed in [Memoranda Series D1 to D22](#) dated June 2016 (CBSA, 2017c). The steps for businesses importing goods into Canada include:

Preparing to Export

1. Obtain a Business Number

Before exporting commercial goods from Canada, contractors would need to obtain a BN issued by the CRA for an import/export account. This import/export account is free of charge and can usually be obtained in a matter of minutes. To register for a BN, contractors can either call the CRA's Business Window at 1-800-959-5525 or visit the CRA's BRO (CBSA, 2017c).

Resources:

- [Business Registration Online \(BRO\)](#)

2. Identify goods to be exported

Contractors should have an accurate description of the goods to export before proceeding. An accurate description would help determine if the goods are regulated, controlled or prohibited by other government departments or if a permit or license is required. The CBSA assists OGDs by applying their legislation relating to the exportation of various commodities (CBSA, 2017c).

Resources:

- [Other Government Departments and Agencies: Reference List for Exporters](#)

3. Determine if a licensed customs broker would be used

The CBSA licenses customs brokers to carry out customs-related responsibilities. A broker's service in relation to exporting typically includes:

- Obtaining, preparing and presenting or transmitting the necessary documents or data;
- Maintaining records; and

- Responding to any CBSA concerns (CBSA, 2017c).

Contractors prepare their own export documentation and transact business directly with the CBSA, or contractors can authorize a Licensed Customs Broker to act as their agent to transact business. It is important to remember that as the exporter, you are ultimately responsible for completing and presenting the exporting documentation, and any subsequent corrections to the documentation, even if you use the services of a broker (CBSA, 2017c).

Consult the CBSA's licensed customs broker list should you wish to use the services of a broker (CBSA, 2017c).

Resources:

- [Licensed Customs Brokers](#)
- [List of Licensed Customs Brokers](#)

4. Determine the country of origin for the goods to be exported

The origin of goods to be exported can affect permit requirements. A permit is not required to export United States origin goods back into the United States.

Resources:

- [Memoranda Series D11, General Tariff Information](#)

5. Ensure the goods are permitted to be exported from Canada

Certain goods cannot be exported from Canada.

Resources:

- [Export Controls](#)

6. Determine whether the goods to be exported are subject to any permits, restrictions or regulations by the CBSA or other government departments

Some goods may be subject to the requirements of OGDs and may require permits, certificates, and inspection. The CBSA is responsible for administering export requirements on behalf of OGDs. It should be noted that more than one government department may have a role to play in the requirements and

regulations pertaining to the export of certain goods; it is therefore beneficial to contact any that may play a role (CBSA, 2017c).

Contractors should verify whether the goods to be exported are controlled, regulated or prohibited by any government department or agency. Contractors should obtain an export permit if required (CBSA, 2017c).

Resources:

- [Other Government Department and Agencies: Reference List for Exporters](#)
- [Memoranda Series D19, Acts and Regulations of Other Government Departments](#)

7. Ensure goods to be exported are allowed entry into the U.S.

Contractors should verify that their products meet the import requirements of the U.S. (CBSA, 2017c).

Determining if an Export Declaration is Required

8. Determine whether or not goods need to be declared on an export declaration

Certain goods are not required to be reported on an export declaration. The exempted goods are listed in Memoranda Series D20 and are further explained in Memorandum D20-1-1, *Export Reporting* (CBSA, 2017c).

If the export matches one of the exemptions on the list, contractors should advise their carrier and indicate “No Declaration Required” (NDR) with the proper explanation or corresponding numerical code on the transport documentation (cargo control document, manifest, bill of lading, etc.) (CBSA, 2017c).

Resources:

- [Memorandum D20-1-1, Export Reporting](#)
- [Export Reporting - No Declaration Required](#)

Classifying Exports

9. If an export declaration is required, determine the appropriate export code

Once contractors have determined that the goods may be exported, and that submitting an export declaration is required, contractors must classify the goods. Depending on the method of reporting, either the Statistics Canada eight-digit Canadian Export

Classification number or the ten-digit Canadian Tariff Classification number is used. If contractors are using the Canadian Automated Export Declaration (CAED) to submit their declaration, they must use the eight-digit Canadian Export Classification number (CBSA, 2017c).

The Canadian Export Classification number is based on an international six-digit 'root' with an additional two digits for Canadian domestic purposes for a total of eight digits. To obtain the eight-digit Canadian Export Classification number, contractors can call Statistics Canada at 1-800-257-2434 or consult the Statistics Canada, Canadian Export Classification online (CBSA, 2017c).

To obtain the ten-digit Tariff Classification Number, contractors can consult the Customs Tariff or contact the BIS (CBSA, 2017c).

Resources:

- [Canadian Export Classification](#)
- [Customs Tariff](#)
- [Border Information Service \(BIS\)](#)
- [Memorandum D10-13-1, Classification of Goods](#)

Shipping and Reporting Goods

10. Determine shipping method and identify the reporting time frame

If contractors are required to report their export to the CBSA, they are required to do so prior to export, and according to specific timeframes depending on the mode of transportation used. When more than one mode of transportation is used to export goods, the timeframes for reporting for each of these modes apply concurrently (CBSA, 2017c).

Goods are to be reported at a designated export office inland or at the border. Export permits, licenses, or certificates must be presented before the goods are exported and the location would be specified on the permit. If the permit, license, or certificate does not name a place of exit, the permit, license, or certificate and the export declaration (if required) must be presented to the export reporting office closest to the place of exit (CBSA, 2017c).

Shipments may be examined by government officials to monitor compliance with CBSA requirements or other government department regulations (CBSA, 2017c).

Resources:

- [Memorandum D20-1-1, Export Reporting](#)
- [Directory of CBSA Offices and Services](#)
- [Offload Policy for Highway Examinations](#)

11. Submit export declaration if required

If contractors are required to report exports, contractors must submit an export declaration by:

- **Canadian Automated Export Declaration (CAED):** An electronic method of reporting exports allowing quick preparation of export declarations.
- **G7 Electronic Export Declaration Process:** This process allows exporters or their agents to file their export declaration using Electronic Data Interchange (EDI).
- **Summary Reporting:** This method is reserved for approved exporters of low-risk goods who export on a regular basis and have met specific CBSA requirements. It enables contractors or agents to summarize required export data, which can be submitted on a monthly basis, in writing, after the goods have left Canada.
- **B13A, Export Declaration:** When electronic permit reporting options are not available; the requirement to present a paper copy of the electronic export declaration and OGD permit at the CBSA office closest to the point of exit remains unchanged using the B13A, Export Declaration (CBSA, 2017c).

Resources:

- [Canadian Automated Export Declaration \(CAED\)](#)
- [G7 Electronic Data Interchange Export Reporting](#)
- [Summary Reporting \(#34 and #35\)](#)
- [B13A, Export Declaration](#)

12. Present proof of export if required.

In some cases, the CBSA requires exporters to produce proof of export that the goods have been exported or have been destroyed. This would apply to goods that were initially imported into Canada under a temporary importation agreement such as a Temporary Admission Permit (form E29B) or the ATA Carnet program (CBSA, 2017c).

Resources:

- [Memorandum D20-1-4, Proof of Export, Canadian Ownership, and Destruction of Commercial Goods](#)
- [Temporary Admission Permit \(form E29B\)](#)
- [ATA Carnet](#)

After Goods are Exported

13. Provide a Certificate of Origin to the receiver of the goods if requested

The certificate of origin is a signed declaration from the manufacturer that the goods are of Canadian origin and meet the requirements of a free trade agreement. The exporter forwards a copy of the certificate of origin to the importer and retains a copy for his records (CBSA, 2017c).

Resources:

- [Memorandum D11-4-14, Certificate of Origin Under Free Trade Agreements](#)

14. Procedures to follow to cancel or amend an export declaration

Contractors may have to cancel a shipment or modify information about a shipment already reported. If so, contractors must submit an amended declaration to an export reporting office clearly identifying the changes. There are different procedures depending on the original reporting method:

- **CAED or G7 EDI Export Reporting** – use the “amend” feature in the program to submit an amended declaration;
- **Summary Reporting** – notify Statistics Canada; and
- **Form B13A** – submit an amended Export Declaration to the export reporting office where you presented your original export document (CBSA, 2017c).

Resources:

- [Canadian Automated Export Declaration \(CAED\)](#)
- [G7 Electronic Data Interchange Export Reporting](#)
- [Summary Reporting \(#34 and #35\)](#)
- [Statistics Canada](#)
- [B13A, Export Declaration](#)

15. Keep all records pertaining the export

Contractors must keep records of exportations.

Resources:

- [Memorandum D20-1-5, Maintenance of Records and Books in Canada by Exporters and Producers.](#)

16. Be aware that the CBSA uses an Administrative Monetary Penalty System (AMPS)

The CBSA uses the Administrative Monetary Penalty System (AMPS) to assess monetary penalties against businesses that do not comply with customs legislation (CBSA, 2017c).

Resources:

- [Administrative Monetary Penalty System \(AMPS\)](#)

Foreign Workers

Immigration

Individuals working in Canada must be Canadian citizens, permanent residents, or hold a current work authorization issued by Citizenship and Immigration Canada (CIC) or CBSA.

Human Resources and Skills Development Canada (HRSDC) is the department of the Canadian government responsible for developing, managing, and delivering social programs and services (CCSD, 2017). If there are insufficient numbers of qualified workers, the contractor may seek foreign worker Employment Validation from HRSDC. The contract may need to satisfy HRSDC that a reasonable attempt has been made to secure Canadian labor.

Under the Temporary Foreign Worker Program, employers can apply for a Labour Market Impact Assessment (LMIA) before a temporary foreign worker (TFW) has been identified. LMIA applications that do not contain the names of the TFWs would be assessed by Employment and Social Development Canada (ESDC)/Service Canada and employers who meet the requirements would receive a positive "Unnamed LMIA," valid for 6 months (ESDC, 2017).

The process for an unnamed LMIA application consists of:

- I. The employer submits a LMIA application without completing the "Foreign Worker Information" section or by indicating "Unnamed" in that section.

- II. The application must be accompanied by all supporting documentation as the assessment is the same as a standard LMIA application.
- III. The employer must continue to make efforts to recruit Canadians and permanent residents until the names of the TFWs have been provided.
- IV. ESDC/Service Canada verifies that the LMIA application meets the criteria for an unnamed LMIA, and assesses the application according to the Program requirements.
- V. If the result of the assessment is positive, a positive LMIA letter labelled "Unnamed LMIA" would be sent to the employer for a given number of positions, and a specific period of employment. The letter would include a "Foreign Worker Name Template".
- VI. As soon as the TFWs have been identified, the employer must complete and submit the "Foreign Worker Name Template" to ESDC/Service Canada.
- VII. ESDC/Service Canada would add the names of the TFWs into the system and issue an official positive LMIA letter to the employer within 5 to 10 business days. The official positive LMIA letter would include the same expiry date as the unnamed positive LMIA letter (ESDC, 2017).

TFWs must apply for a work permit from Immigration, Refugees and Citizenship Canada (IRCC) before the expiry date of the positive LMIA. Their applications for a work permit must include a copy of the official positive LMIA letter, the annexes, and the employment contract (ESDC, 2017).

Resources:

- [Human Resources and Skills Development Canada \(HRSDC\)](#)
- [What is a Labour Market Impact Assessment \(LMIA\)](#)

Work Authorizations

Individuals working in Canada must be Canadian citizens, permanent residents or hold a current work authorization issued by CIC or CBSA. Work authorizations are issued for a fixed period of time (temporary) and are specific to the work being done, the individual doing the work and the work location. There is a fee for issuing a work authorization (CIC, 2017).

In the majority of cases, CIC and CBSA would insist on having ESDC LMIA to support requests for work authorizations (CIC, 2017).

Resources:

- [Work in Canada Temporarily](#)

Labour Market Impact Assessment (LMIA)

At the request of an employer, ESDC would issue a LMIA to support a request for work authorization. ESDC can also issue a LMIA at the direct request of CIC/CBSA Officers (ESDC, 2017).

To request a LMIA, an employer must complete the Request for a LMIA application form and submit it to the Service Canada location where the work is being done (ESDC, 2017).

In response to the request, ESDC can issue either a positive or negative opinion depending on the potential impact on the Canadian Labor market (ESDC, 2017).

Resources:

- [What is a Labour Market Impact Assessment \(LMIA\)](#)

Worker Safety

Contractors are responsible for preventing workplace accidents and injuries, and promoting safe and healthy workplaces. These responsibilities and obligations fall under Part II of the *Canada Labour Code* and apply to workplaces under federal jurisdiction only (Labour Program, 2016).

Contractors would need to ensure that employees have the necessary information, training and supervision to perform their jobs safely. Managers, supervisors, health and safety committees, and representatives must understand their roles and responsibilities under the Canada Labour Code. Additional areas of obligations and responsibilities under the Canada Labour Code are investigations, inspections, accident reporting, and the Hazard Prevention Program (Labour Program, 2016).

Contractors are responsible for:

- An appropriate understanding of overall work safety procedures;

- Knowledge of the safe use of workplace tools and equipment;
- Awareness of known or foreseeable workplace hazards; and
- (Whenever possible) training sessions should include documentation (Labour Program, 2016).

Contractors would need to ensure that health and safety committees/representatives understand their duties with respect to:

- Maintaining regular meetings (this applies to committees only);
- Conducting monthly inspections; and
- Participating in accident investigations and job hazard analyses (Labour Program 2016).

Contractors would need to ensure that managers and supervisors understand their duties related to the internal complaint resolution process, refusals to work, and accident investigations and reporting (Labour Program, 2016).

New Brunswick

WorkSafeNB (Travail Sécuritaire NB) enforces the New Brunswick *Occupational Health and Safety Act* (OHS). The OHS Act sets out the rights and duties of all parties in the workplace. It establishes procedures for dealing with workplace hazards and it provides for enforcement of the law where compliance has not been achieved voluntarily by workplace parties. Employers should note that the OHS Act makes it clear that the employers have the greatest responsibilities with respect to health and safety in the workplace (WorkSafeNB, 2017).

Contractors will need Workplace Safety and Insurance Board (WSIB) coverage. The WSIB is a government agency that provides no-fault compensation for New Brunswick workplaces covered under the *Workplace Safety and Insurance Act, 1997* (WSIB, no date).

Resources:

- [Federally Regulated Businesses and Industries](#)
- [Health and Safety Committees and Representatives](#)
- [Hazard Prevention Program](#)
- [Workplace Safety](#)
- [WorkSafeNB](#)
- [New Brunswick Occupational Health and Safety Act](#)
- [Guide to OHS Legislation](#)

- [Bill 119 Mandatory Coverage for the Construction Industry](#)

IV. ADDITIONAL INFORMATION

For additional information, please contact:

Joel Kittredge
Project Manager
Maine Department of
Transportation
16 State House Station
Augusta, ME 04330
(207) 624 – 3550
joel.kittredge@maine.gov

Richard Beauregard-Long
New Brunswick Department of
Transportation and Infrastructure
Project Development and Asset Management
P.O. Box 6000
Fredericton, New Brunswick, E3B 5H1
(506) 453 – 3939
Richard.beauregard-long@gnb.ca

V. VISITING THE PROJECT SITE

It is suggested that persons traveling to the Madawaska LPOE or Edmundston POE for purposes of viewing the International Bridge and adjoining areas carry their passport at all times even if they don't anticipate leaving their home country and observe the following protocols.

Madawaska LPOE

- When planning to visit the International Bridge and the LPOE, contact Mr. Cyr at least a few days in advance and provide the names of the individuals and their birthdates.
- When arriving at the LPOE, proceed directly to the front desk and ask to speak to Mr. Cyr (he may or may not be on duty and available).
- For Canadian citizens visiting the U.S. for meetings, a U.S. Visa is not required.
- A photo permit is not required to take photos. When taking photos, under no circumstances should any officers or their vehicles appear in any photographs.
- When taking photos or videotaping, respect other's privacy and do not include their license plate numbers in the photo or videotape.

Mr. Scott Cyr
U.S. Customs and Border Protection
LPOE Director
(207) 728-4565 or mobile (207) 538-6797
Scott.P.Cyr@Cbp.Dhs.Gov

Edmundston POE

- When planning to visit the International Bridge and the POE, contact Mr. Poitras at least a few days in advance with: names of individuals, purpose of visit, dates of visit.
 - o If a group of people would be visiting the International Bridge and the POE, provide a “master list” of persons to the CBSA. The master list should include: full name, citizenship and birthday.
- When arriving at the POE, proceed directly to the front desk. Inform the officer on duty of your arrival.
- All persons visiting the International Bridge and the POE must check in/check out with the office at the front desk every day.
- A photo permit is not required to take photos. When taking photos, please respect the officers, their vehicles, and their privacy.
- When taking photos or videotaping, respect other’s privacy and do not include their license plate numbers in the photo or videotape.
- For U.S. citizens visiting the International Bridge and the POE, a work permit is not required. If arriving in Canada via an airport, others may not have the same understanding and a work permit from IRCC may be required.

Sylvain Poitras
Chief of Operations
Canada Border Services Agency
Chief of the Edmundston POE
(506) 739-0360
Sylvain.Poitras@cbsa-asfc.gc.ca

Port of Entry Phone: (506) 739-1820

General Inquiries visit Border Information Services (BIS) at: <https://www.cbsa-asfc.gc.ca/contact/bis-sif-eng.html>
Phone:
Calls within Canada Toll Free: 1-800-461-9999

Calls outside Canada: 1-204-983-35001-506-636-5064

Media Inquiries: communicationsatl@cbsa-asfc.gc.ca

Please understand these are only guidelines for purposes of viewing the International Bridge and adjoining areas and subject to others' interpretation and change.

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Handout from Public Meeting in June of 2017



Welcome to the first Information Session for the *Madawaska/Edmundston International Bridge and Border Crossing Feasibility and Planning Study* June 2017

Purpose of this Information Session

The Study Team is conducting an initial information session as part of the Madawaska/Edmundston International Bridge and Border Crossing Feasibility and Planning Study to consult with and obtain input from the public. The Feasibility and Planning Study will develop and evaluate alternatives for rehabilitating or replacing the International Bridge connecting Madawaska, Maine to Edmundston, New Brunswick, as well as addressing the potential Port of Entry (POE) requirements in both Madawaska, ME and Edmundston, NB. The study team is led by:

- Maine Department of Transportation (MaineDOT)
- U.S. General Services Agency (GSA)
- U.S. Customs and Border Protection (CBP)
- New Brunswick Department of Transportation and Infrastructure (NBDTI)
- Public Works and Government Services Canada (PWGSC)
- Canada Border Services Agency (CBSA).



Purpose and Need for the Project

The purpose of this project is to provide for the long-term safe and efficient flow of current and projected traffic volumes, including the movement of goods and people between Edmundston, New Brunswick and Madawaska, Maine.

The proposed project is needed because: 1) the existing International Bridge is nearing the end of its useful life, and 2) the existing Madawaska POE is substandard, inhibiting the agencies assigned to the POE from efficiently and effectively fulfilling their respective missions.

Basic Facts

- MaineDOT and NBDTI have no intention of adding to their bridge inventory. Therefore, if a new bridge is built, the preference is to decommission the existing bridge.
- A new bridge would have two lanes, shoulders, and a sidewalk to accommodate vehicular and non-motorized traffic.
- The current U.S. POE is under sized and obsolete and will be replaced in conjunction with the bridge project.
- The CBSA would prefer not to move the existing POE in Edmundston.
- This project is looking for a long-term solution. New bridge and border crossing infrastructure should be designed to last 75 years.

Regional Context Map



Stay Informed

A project website will be hosted by MaineDOT and will be up by the summer of 2017; project information will be available along with information on future meetings.

A second Public Information Session will be scheduled for the fall of 2017 and will have updates to the progress of the Feasibility and Planning Study. The final study results will be published in 2018.

If you have further questions or comments, please contact:

Nate Howard

Maine Department of Transportation
Bureau of Planning
16 State House Station
Augusta, ME 04330
Nathan.Howard@maine.gov
(207) 624 – 3310

Richard Beauregard-Long

New Brunswick Department of Transportation and Infrastructure
Policy and Legislative Affairs
P.O. Box 6000
Fredericton, New Brunswick, E3B 5H1
Richard.beauregard-long@gnb.ca
(506) 453 – 3939

**Final Supplemental
Environmental Impact
Statement and Section 4(f)
Evaluation**

New Madawaska U.S. Land Port of Entry and International Bridge Project

*Madawaska, Aroostook County, Maine to
Edmundston, New Brunswick, Canada*



Final Supplemental Environmental Impact Statement and Final Programmatic Section 4(f) Evaluation

**U.S. General Services Administration, Region 1
Federal Highway Administration**

FHWA-ME-EIS-18-01-F

August 2019

Federal Co-Lead Agencies:



State Lead Agency:



Cooperating Agency:



In coordination with U.S. Customs and Border Protection, the New Brunswick Department of Transportation and Infrastructure, Public Services and Procurement Canada, and the Canada Border Services Agency

New Madawaska U.S. Land Port of Entry and International Bridge Project

Final Supplemental Environmental Impact Statement and Final Programmatic Section 4(f) Evaluation

U.S. General Services Administration, Federal Highway Administration, and Maine Department of Transportation

FHWA-ME-EIS-18-01-F

August 2019

In Cooperation with the U.S. Coast Guard

In Coordination with U.S. Customs and Border Protection, the New Brunswick Department of Transportation and Infrastructure,
Public Services and Procurement Canada, and the Canada Border Services Agency

The U.S. General Services Administration (GSA), the Federal Highway Administration (FHWA), and the Maine Department of Transportation (MaineDOT), in cooperation with the U.S. Coast Guard (USCG), and in coordination with U.S. Customs and Border Protection (CBP), the New Brunswick Department of Transportation and Infrastructure (NBDTI), Public Services and Procurement Canada (PSPC), and the Canada Border Services Agency (CBSA), propose to replace the existing U.S. Land Port of Entry (LPOE) and the existing International Bridge in Madawaska, Aroostook County, Maine, and Edmundston, New Brunswick, Canada, with a new LPOE and International Bridge to improve safety, security, and functionality. The existing LPOE facilities are undersized and obsolete, and consequently incapable of allowing the federal agencies assigned to the LPOE to fulfill their missions efficiently. The existing International Bridge is nearing the end of its useful life and has been restricted to vehicles weighing under five tons. The project consists of the likely demolition or decommissioning of the existing LPOE and International Bridge, and the construction of a new LPOE facility, and a proposed bridge replacement. This Final Supplemental Environmental Impact Statement (FSEIS) evaluates a No-Build Alternative and several build alternatives for the LPOE and the International Bridge Project and identifies a preferred alternative.


Glenn C. Rotondo

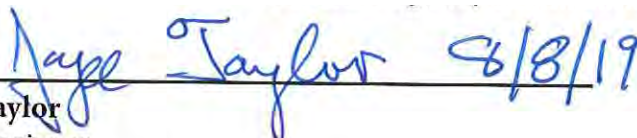
Regional Administrator

U.S. General Services Administration


Todd D. Jorgensen

Maine Division Administrator

Federal Highway Administration


Joyce Taylor

Chief Engineer

Maine Department of Transportation

**Comments on this Final Supplemental Environmental Impact Statement are due
by November 4, 2019 and should be sent to:**

Alexandria Kelly

U.S. General Services Administration, New England Region

Design and Construction Division (1PCM), Room 110

Thomas P. O'Neill, Jr. Federal Building

10 Causeway Street, Room 975

Boston, MA 02222-1077

alexandria.kelly@gsa.gov

Summary

A. Introduction

1. Background

It is widely recognized that the International Bridge connecting Edmundston, New Brunswick and Madawaska, Maine is functionally obsolete, nearing the end of its useful life, and in need of rehabilitation or replacement (Exhibit S.1). Underscoring the need to rehabilitate or replace the International Bridge, the Maine Department of Transportation (MaineDOT) and New Brunswick Department of Transportation and Infrastructure (NBDTI) posted the International Bridge at five tons (the equivalent of a passenger vehicle) in October 2017. It is further recognized that the size and conditions of the existing building and overall site of the existing Madawaska Land Port of Entry (LPOE) are substandard, preventing the agencies assigned to the LPOE from adequately fulfilling their missions (Exhibit S.2).

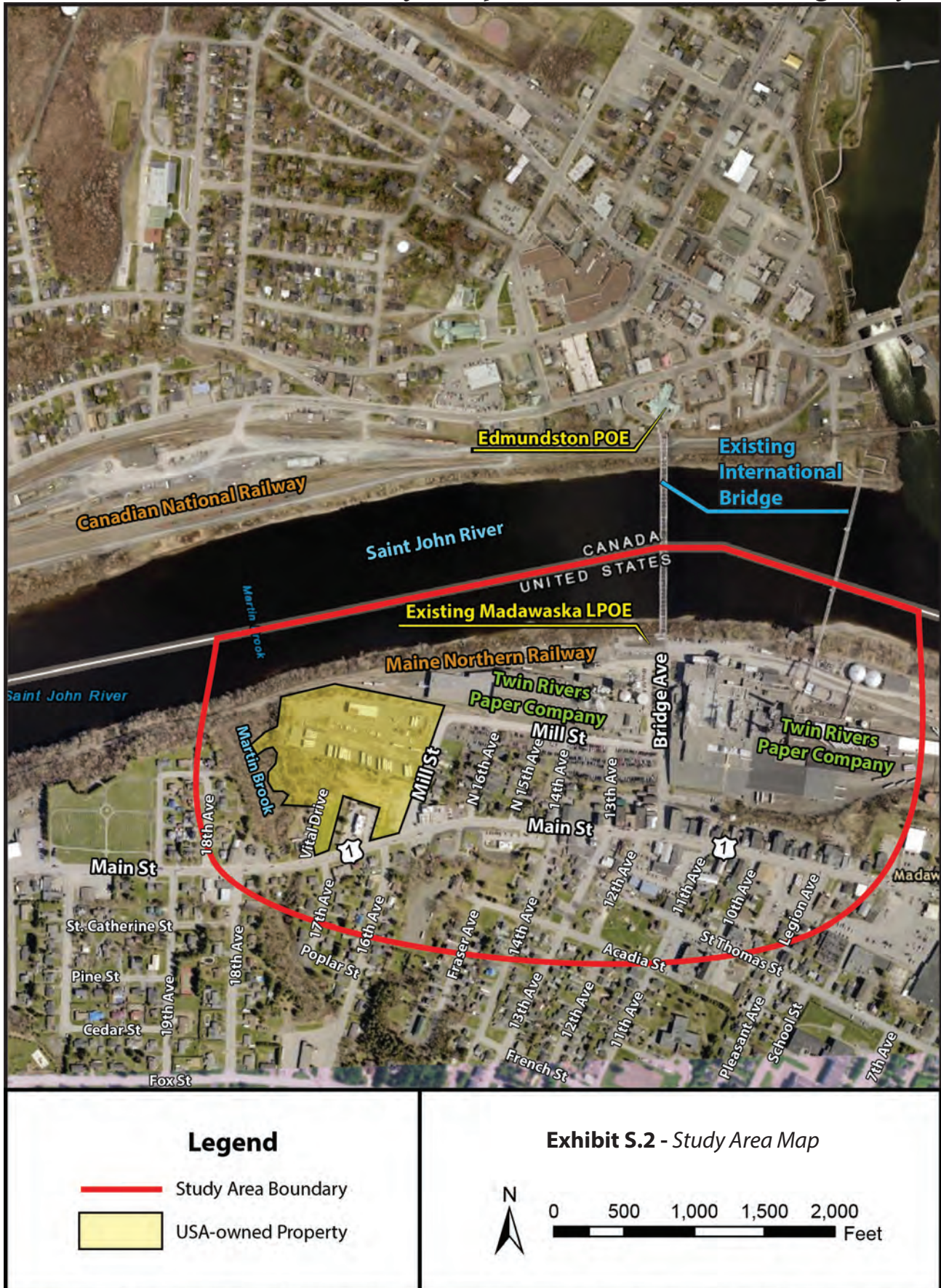
In response, the federal, provincial, and state agencies responsible for the movement of people and goods across this international crossing initiated in 2017 the preparation of the *Madawaska/Edmundston International Bridge and Border Crossing Feasibility and Planning Study* (MEFPS) to identify a preferred location for the rehabilitation or replacement of the International Bridge and Madawaska LPOE.

After identifying the preferred location, the MEFPS led directly to the Draft Supplemental Environmental Impact Statement (DSEIS) for the New Madawaska LPOE and International Bridge, which was followed by this Final Supplemental Environmental Impact Statement (FSEIS). Replacing the Madawaska LPOE was considered by the U.S. General Services Administration (GSA) in 2006 and 2007 and an environmental impact statement (EIS) was prepared. After the publication of the 2007 FEIS and ROD, the GSA chose not to advance the replacement of the Madawaska LPOE due to a number of factors.

The condition of the existing International Bridge has continued to deteriorate. The GSA and the Federal Highway Administration (FHWA), acting as joint lead federal agencies, and the MaineDOT as the state lead agency, in cooperation with the United States Coast Guard (USCG), and in coordination with the U.S. Customs and Border Protection (CBP), NBDTI, Public Services and Procurement Canada (PSPC), and the Canada Border Services Agency (CBSA), propose to replace the existing Madawaska LPOE facility and the existing International Bridge in Madawaska, Aroostook County, Maine, and Edmundston, New Brunswick, Canada, with a new LPOE and International Bridge to improve safety, security, and functionality.



New Madawaska U.S. Land Port of Entry and International Bridge Project



Esri, HERE, Garmin, © OpenStreetMap contributors, and the GIS user community, Source: Esri, DigitalGlobe, GeoEye, Earthstar Geographics, CNES/Airbus DS, USDA, USGS, AeroGRID, IGN, and the GIS User Community

2. Project Description

The proposed project consists of the likely demolition or decommissioning of the existing Madawaska LPOE and the demolition of the existing International Bridge; the construction of a new LPOE consisting of a main administration building and support buildings with parking, circulation, and processing areas; and the construction of a new International Bridge. The new LPOE would be designed in accordance with the requirements and criteria of the GSA and the CBP to provide facilities adequate for fulfilling the agencies' respective missions. The new International Bridge would be designed in accordance with MaineDOT standards with a design life of at least 75 years.

The existing International Bridge carries utility lines operated by Twin Rivers Paper Company (Twin Rivers) across the Saint John River. These lines would be relocated, and the existing International Bridge would be demolished.

As part of the construction of the LPOE, the portions of Mill Street and Main Street adjacent to the LPOE may be reconstructed or reprofiled to provide smooth ingress and egress to the LPOE.

3. Purpose and Need

The purpose of this project is to provide for the long-term safe and efficient flow of current and projected traffic volumes, including the movement of goods and people, between Madawaska, Maine and Edmundston, New Brunswick.

The proposed project is needed because: 1) the existing International Bridge is nearing the end of its useful life, and 2) the size and conditions of the existing building and overall site of the Madawaska LPOE are substandard, preventing the agencies assigned to the LPOE from adequately fulfilling their respective missions (MaineDOT, et al., 2018).

a. Existing Madawaska Land Port of Entry

The Madawaska LPOE is situated on approximately 0.87 acre and has many deficiencies and physical limitations. The size and conditions of the existing building and overall site are substandard, preventing the agencies assigned to the LPOE from adequately fulfilling their respective missions. The deficiencies with the existing facilities have led to extensive traffic delays for vehicles entering the U.S.

b. Existing International Bridge is Nearing the End of its Useful Life

The International Bridge is a 928-foot-long four-span bridge carrying Bridge Avenue over the Saint John River. Originally built in 1920, each span consists of a Pennsylvania Truss measuring 232 feet long with a roadway width of 20 feet, 8 inches (MaineDOT, 2017a).

After nearly 100 years of service, the overall bridge is in poor condition. Despite efforts to maintain the bridge, the rate of deterioration has accelerated to the point

New Madawaska U.S. Land Port of Entry and International Bridge Project

that the end of the useful service life of the bridge is fast approaching. In October 2017, the bridge was posted at five tons (the equivalent of a passenger vehicle). Further attempts to repair or rehabilitate the bridge will not restore the full capacity of the bridge to meet today's load requirements or geometric standards; hence, any substantial investments would be impractical. Extensive repairs will be needed in the future on a more frequent basis to maintain the usefulness of the structure, albeit in a reduced state of functionality.

B. Alternatives

In the GSA's 2007 Final Environmental Impact Statement and Record of Decision, the selected alternative for replacing the LPOE was the construction of a new LPOE to the southwest in the Town of Madawaska's industrial zone. A 1,600-foot-long elevated roadway along the top of the bank of the Saint John River would provide access to the existing International Bridge.

The results of the MEFPS identified a preferred location for the new LPOE and a preferred corridor for the International Bridge that was supported by the GSA, MaineDOT, CBP, NBDTI, PSPC, and the CBSA. Many alternatives, including some that were studied in the 2007 Final Environmental Impact Statement and other studies, were identified and 12 were developed and analyzed before a preferred location for the LPOE and a preferred corridor for a proposed International Bridge were identified (Exhibit S.3). As part of developing and analyzing a preferred location for the LPOE and a preferred corridor for a proposed new International Bridge, social, economic, and natural features and potential impacts were taken into consideration and extensive public involvement occurred.

The preferred location for the Madawaska LPOE is a parcel of land, to the west of the existing LPOE and the Twin Rivers facility, that is currently owned by the U.S. government.

The preferred corridor for the new International Bridge connects the USA-owned property to the existing Edmundston Port of Entry (POE), as the PSPC and the CBSA noted that the POE was adequate for the foreseeable future and there are no plans to modify or expand it (MaineDOT, et al., 2018).

Following the identification of a preferred location and corridor, the GSA identified, developed, and analyzed three build alternatives that could potentially satisfy the project's purpose and needs for the LPOE; the FHWA and MaineDOT identified, developed, and analyzed three build alternatives for the new International Bridge. In developing and analyzing alternatives, the GSA, FHWA, and MaineDOT consulted with regulatory and resource agencies at the federal and state levels, local officials, industry, and the public. The alternatives for the LPOE and International Bridge were compared to the No-Build Alternative. After further analysis, a Preferred LPOE Alternative and a Preferred Bridge Alternative were identified.



New Madawaska U.S. Land Port of Entry and International Bridge Project

1. The No-Build Alternative

The National Environmental Policy Act (NEPA) and other legislation affording the consideration and protection of social, natural, and cultural features require the consideration of a No-Build Alternative. In addition to fulfilling a requirement, discussion of this alternative serves two important purposes: 1) it may be a reasonable alternative, especially where the adverse impacts of a proposed action are high and the need is relatively minor; and 2) the No-Build Alternative serves as a benchmark against which the impacts of the other alternatives can be compared.

Under the No-Build Alternative, operation of the existing LPOE and International Bridge would continue at their existing locations and using the existing facilities. Except for regular maintenance and minor repairs to the existing infrastructure and equipment, no new construction or demolition would take place. No new inspection and travel lanes, facilities, or bridge structure would be built. This alternative would not require the acquisition of private property. The International Bridge would continue to deteriorate, and the posted weight limit would remain in effect.

The No-Build Alternative does not satisfy the project's purpose or needs because, without new construction, there would be no appreciable improvement to the current operating conditions at the LPOE or International Bridge. The CBP and other agencies' staff would continue to operate with inadequate space to efficiently perform their duties and carry out their agencies' missions. Outbound inspection of vehicles and pedestrians would continue to be difficult and hazardous for LPOE staff. The existing International Bridge would continue to deteriorate, the five-ton weight restriction would remain in effect, the amount of time and cost to maintain the bridge would increase, and, eventually, the bridge would become unsafe for use.

2. Madawaska Land Port of Entry

Following the preparation of the 2018 MEFPS, the GSA began further study of the USA-owned property and developed alternatives for the LPOE. The USA-owned property has constraints that were considered in the development of alternatives for the LPOE. The Town of Madawaska has zoned the area along Martin Brook as a resource protection zone and development should be set back 75 feet to help ensure its protection. From Main Street to the area of the proposed International Bridge, the USA-owned property decreases approximately 45 feet in elevation. In the development of the LPOE, the GSA would like to maintain a grade of 2 percent or less (MPdL Studio, 2018).

The build alternatives were designed to meet several key building, processing, and parking area requirements:

- A consolidated administration building.
- Primary inspection areas for commercial traffic (trucks), passenger vehicles, and buses.

- Secondary inspection areas for trucks, passenger vehicles, and buses.
- Adequate number and location of parking spaces.
- Adequate space to accommodate security measures.

Each of the build alternatives was designed to follow the sequential circulation of traffic flow of a LPOE, which requires certain buildings be adjacent to one another. For instance, the primary inspection areas must precede secondary ones. Administration should be consolidated to the extent possible in one building. Parking for visitors and employees should be in a convenient location in proximity to the buildings they serve.

a. Alternative A

Alternative A was developed on the existing USA-owned property with no additional private property (Exhibit S.4). The existing USA-owned property has few opportunities for access to and from Main Street. As a result, outbound and inbound driveways are separated by private property owned by McDonald's ("the McDonald's property"). The outbound driveway is close to the intersection at Mill Street, and the inbound driveway is located between Vital Drive and the exit from the McDonald's property parking lot and drive-through (MPdL Studio, 2018).

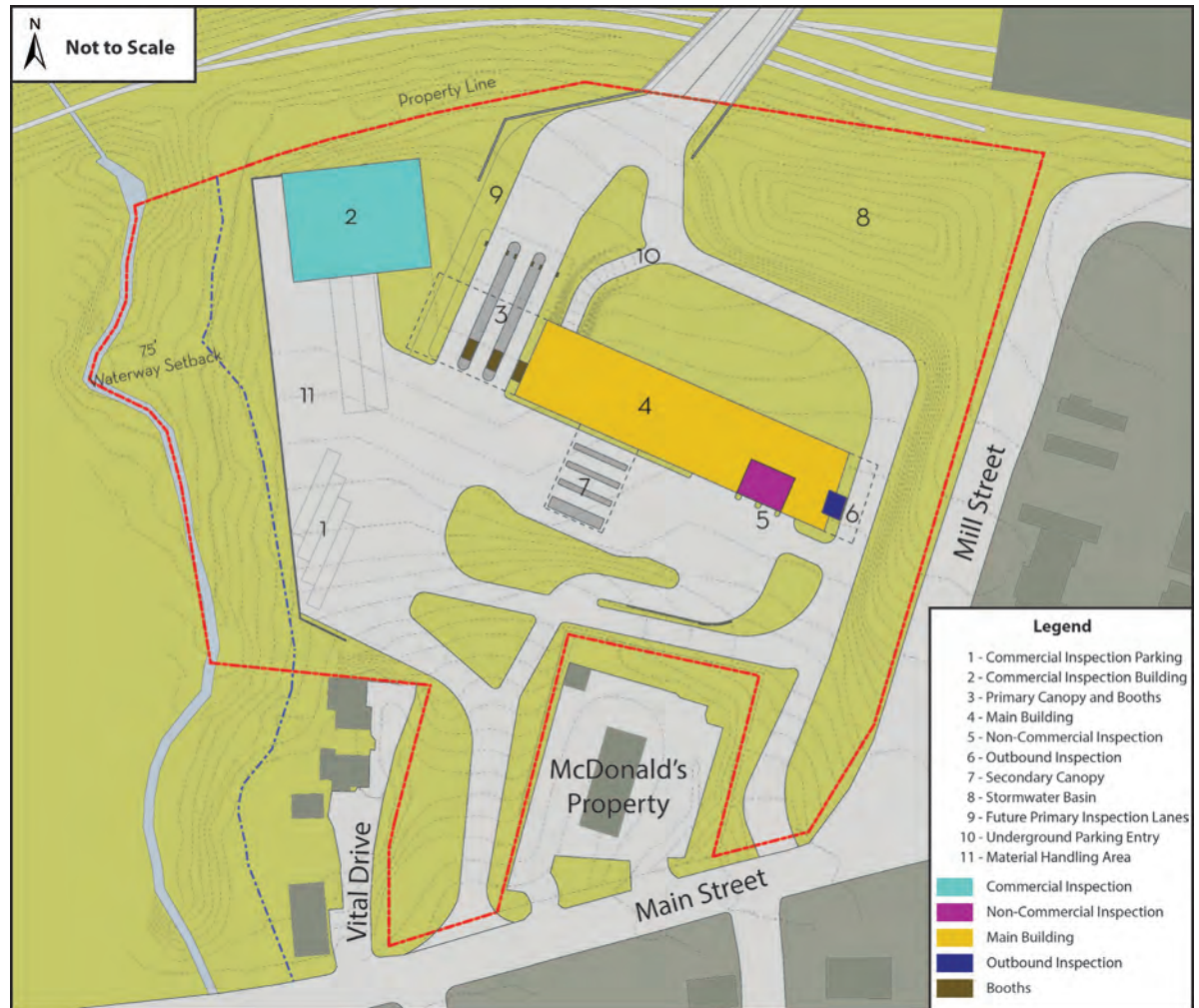
The required distance between a driveway and an unsignalized intersection, as per MaineDOT access management guidelines, should be at least 100 feet from the edge of the existing intersection and the edge of the new driveway. Alternative A does not meet this guideline (MPdL Studio, 2018).

Canadian B-trains (double trailers) would need to travel on Main Street for a short distance, since this alternative does not provide direct access from the USA-owned property to Mill Street. Canadian B-trains are not permitted on Maine State Highways (per Title 29-A MRSA § 2354-C), but they are used frequently by Twin Rivers. Canadian B-trains are only permitted to travel from the United States-Canada border in Madawaska directly north or south into the Twin Rivers facility (or its successor) or south on Bridge Street to Mill Street to reverse direction. Permission and any changes to the approved travel patterns for Canadian B-trains would require a legislative process and approval. Alternative A would require MaineDOT to permit B-trains on Main Street between the new LPOE and Mill Street (MPdL Studio, 2018).

The USA-owned property limits the arrangement of the buildings and parking areas for the LPOE. Most notably, Alternative A would require underground parking to meet the projected parking demands of the LPOE. Visitor parking is not practical. The functionality of the commercial inspection parking is compromised due to limited space. The materials handling area, the commercial inspection staging lot, and the impound lot are in proximity to one another, resulting in vehicle conflicts (MPdL Studio, 2018).

New Madawaska U.S. Land Port of Entry and International Bridge Project

Exhibit S.4 - Madawaska LPOE Alternative A



Source: MPdL Studio, 2018

Alternative A has approximately 60 percent of the open space necessary to accommodate seasonal snow storage (MPdL Studio, 2018).

After careful consideration and comparison to the other alternatives for the LPOE, Alternative A was dismissed from further consideration because:

- The entrance to the LPOE does not meet MaineDOT's access management guidelines and would not be approved by MaineDOT.
- The exit from the LPOE to Main Street, between Vital Drive and the exit from the McDonald's restaurant property, has limited visibility in both directions on Main Street, does not meet MaineDOT's access management guidelines, and would not be approved by MaineDOT.
- The location of the outbound and inbound driveways in proximity to other driveways and an intersection raises safety concerns, particularly in the context of historical motor vehicle crash data at the intersection of Mill Street and in front of McDonald's.

- Canadian B-trains would need to travel on Main Street for a short distance. Canadian B-trains are not permitted to travel on Main Street (per Title 29-A MRSA § 2354-C). Canadian B-trains are only permitted to travel from the United States-Canada border in Madawaska directly north or south into the Twin Rivers facility (or its successor) or south on Bridge Street to Mill Street to reverse direction. Permission and any changes to the approved travel patterns for Canadian B-trains would require a legislative process and approval.
- The property does not have enough space to permit the operations of the LPOE to function efficiently.
- The property does not have enough space for parking.
- The property has only approximately 60 percent of the open space necessary to accommodate seasonal snow storage.
- The property does not have enough open space to accommodate the necessary length of road to descend from the bridge landing elevation (538) to the elevation of Mill Street (520) without a steep road grade of approximately 11 percent. Road grades may be no higher than 5 percent, and 2 percent in some locations to comply with MaineDOT civil highway standards, and to allow safe maintenance and circulation in winter conditions.
- The property does not have space for future expansion.
- The direct proximity of private and commercial properties to the new LPOE poses safety and security risks to CBP's mission and operations, along with line of site and traffic impedance issues. The Government and the community would be better served if those properties were incorporated into the LPOE site (MPdL Studio, 2018).

b. Alternative B

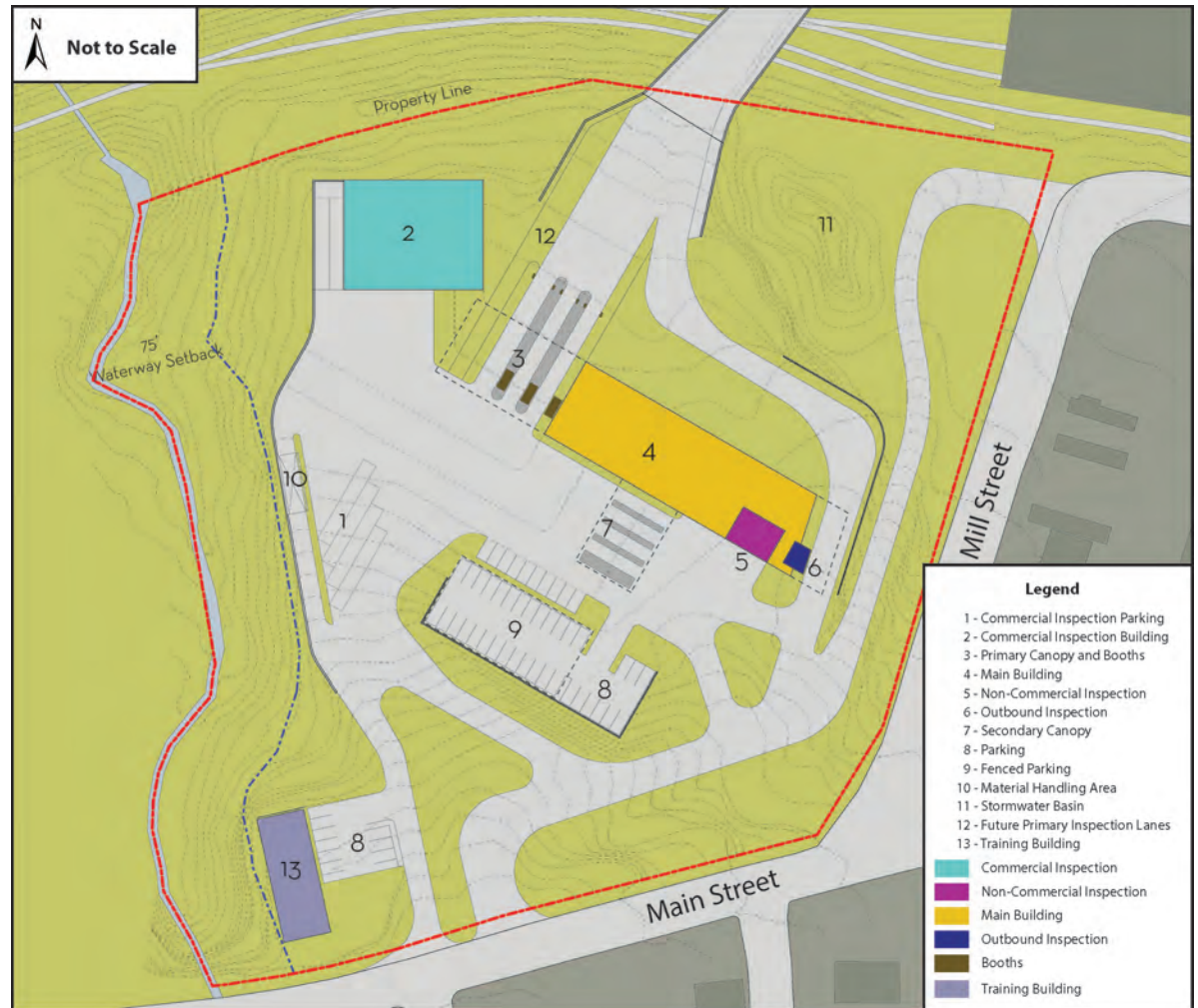
Alternative B requires the acquisition of additional private property (Exhibit S.5). Several options were pursued, exploring the acquisition of only the McDonald's property and/or the Vital Drive properties. GSA concluded that acquiring these two sets of properties had substantial benefit for the flow of traffic and pedestrians around and through the new LPOE. Therefore, Alternative B would require the acquisition of the McDonald's property and the three Vital Drive properties (MPdL Studio, 2018).

Alternative B allows for improved visibility for vehicles entering and exiting the new LPOE as well as favorable locations for ingress and egress from Main Street. The outbound driveway is more than 100 feet away from the intersection of Mill Street and Main Street which reduces the potential for vehicle crashes and safety concerns (MPdL Studio, 2018).

Alternative B provides direct inbound access from the USA-owned property to Mill Street, reducing traffic on Main Street. Given the additional land, Alternative B accommodates the necessary length of road to descend from the bridge landing elevation to Mill Street without a steep grade of approximately 11 percent. Road grades may be no higher than 5 percent, and 2 percent in some locations to comply

New Madawaska U.S. Land Port of Entry and International Bridge Project

Exhibit S.5 - Madawaska LPOE Alternative B



Source: MPdL Studio, 2018

with MaineDOT civil highway standards, and to allow safe maintenance and circulation in winter conditions.

Alternative B does not include a direct outbound connection to Mill Street. Alternative B would require MaineDOT to permit Canadian B-trains to use Main Street between Mill Street and the new LPOE (MPdL Studio, 2018). Canadian B-trains are not permitted to travel on Main Street (per Title 29-A MRSA § 2354-C). Canadian B-trains are only permitted to travel from the United States-Canada border in Madawaska directly north or south into the Twin Rivers facility (or its successor) or south on Bridge Street to Mill Street to reverse direction. Permission and any changes to the approved travel patterns for Canadian B-trains would require a legislative process and approval.

Alternative B has space for all necessary LPOE activities, flow of traffic, and snow storage (MPdL Studio, 2018).

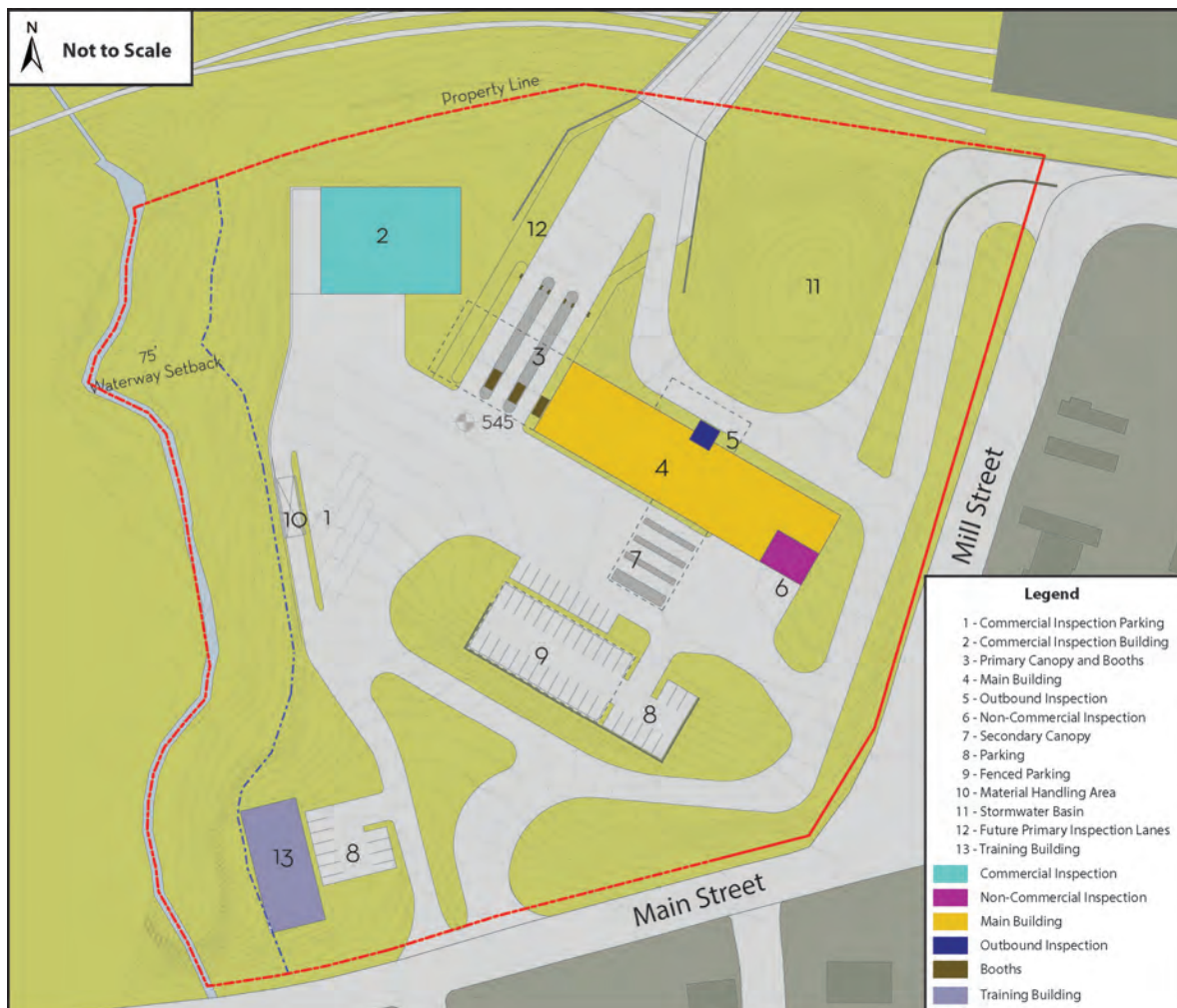
After careful consideration and comparison to the other alternatives for the LPOE, Alternative B was dismissed from further consideration because Canadian B-trains, destined for New Brunswick, would need to travel on Main Street for a short distance (MPdL Studio, 2018).

Canadian B-trains are not permitted to travel on Main Street (per Title 29-A MRSA § 2354-C). Canadian B-trains are only permitted to travel from the United States-Canada border in Madawaska directly north or south into the Twin Rivers facility (or its successor) or south on Bridge Street to Mill Street to reverse direction. Permission and any changes to the approved travel patterns for Canadian B-trains would require a legislative process and approval.

c. Alternative C

Alternative C requires the acquisition of additional private property (Exhibit S.6) (MPdL Studio, 2018). Alternative C would require the acquisition of the McDonald's property and the three Vital Drive properties (MPdL Studio, 2018).

Exhibit S.6 - Madawaska LPOE Alternative C



Source: MPdL Studio, 2018

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Alternative C allows for improved visibility for vehicles entering and exiting the new LPOE. The outbound driveway is more than 100 feet from the intersection of Mill Street and Main Street, which reduces the potential for vehicle crashes and safety concerns (MPdL Studio, 2018).

Alternative C provides direct inbound and outbound access to and from the USA-owned property to Mill Street. Given the additional land, Alternative C accommodates the necessary length of road to descend and ascend from the bridge landing elevation to Mill Street without a steep grade. This would enable Canadian B-trains, not permitted on Maine State Highways but frequently used by Twin Rivers, to access Mill Street, both inbound and outbound (MPdL Studio, 2018).

Alternative C has space for all necessary LPOE activities, flow of traffic, and snow storage (MPdL Studio, 2018).

LPOE Alternative C was identified as the Preferred Alternative.

3. *International Bridge*

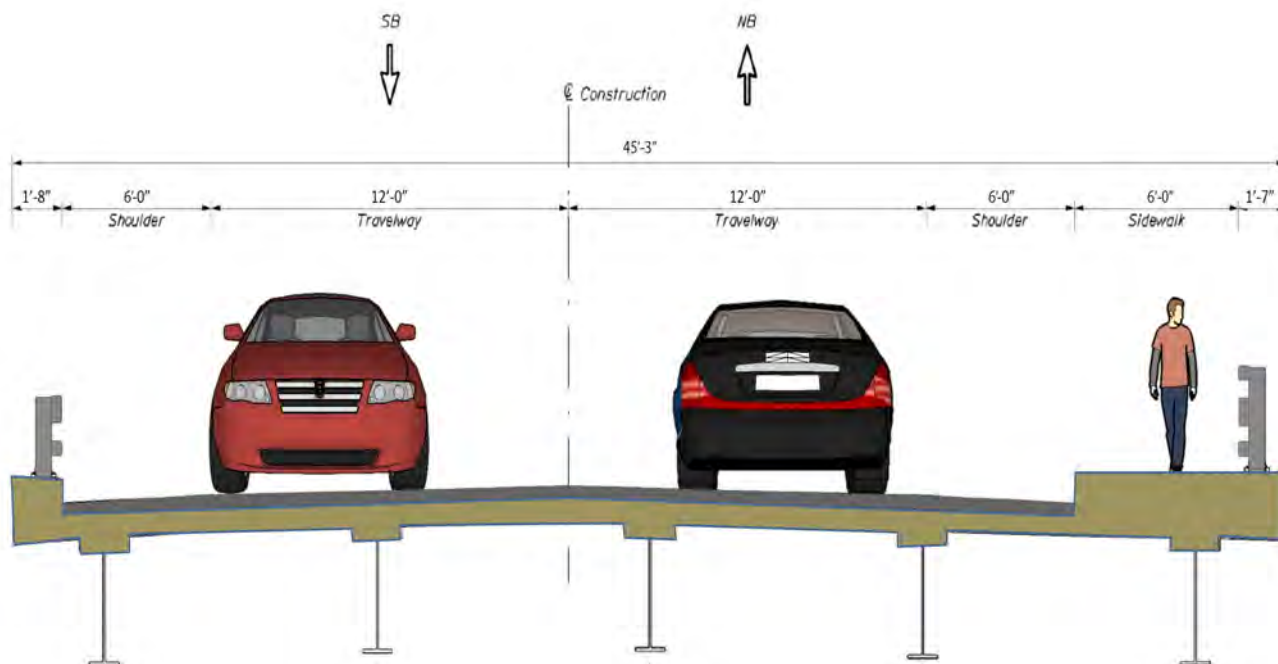
Conceptual bridge alternatives were developed and evaluated.

It is recognized that bridges with fewer spans have greater girder/concrete depths. These larger structure depths may unacceptably reduce clearances over the Maine Northern Railway (MNR) and Canadian National Railway (CNR) rail lines. Conversely, increasing the number of spans would require the construction of additional piers which would increase in-stream construction, the potential for ice jams, and construction costs.

Based on these considerations, the construction of a steel girder or segmental concrete bridge with either five, six, or seven spans was selected. Additional options consisting of steel tub girders and precast segmental concrete were briefly considered but dismissed after being judged less desirable based on the proposed bridge size, geometry, and constraints during construction.

Each of the bridge alternatives shares the following features:

- The bridge typical section (Exhibit S.7).
- The horizontal bridge alignment.
- The vertical alignment for the bridge generally decreases from north to south, maintaining minimum vertical clearance required over the MNR and CNR rail lines.
- Stub or cantilever abutments between the LPOE and POE facilities and the adjacent railroad tracks.
- Portions of the bridge ends would be flared to accommodate the turning movements of large trucks.

Exhibit S.7 - Cross Section of the International Bridge

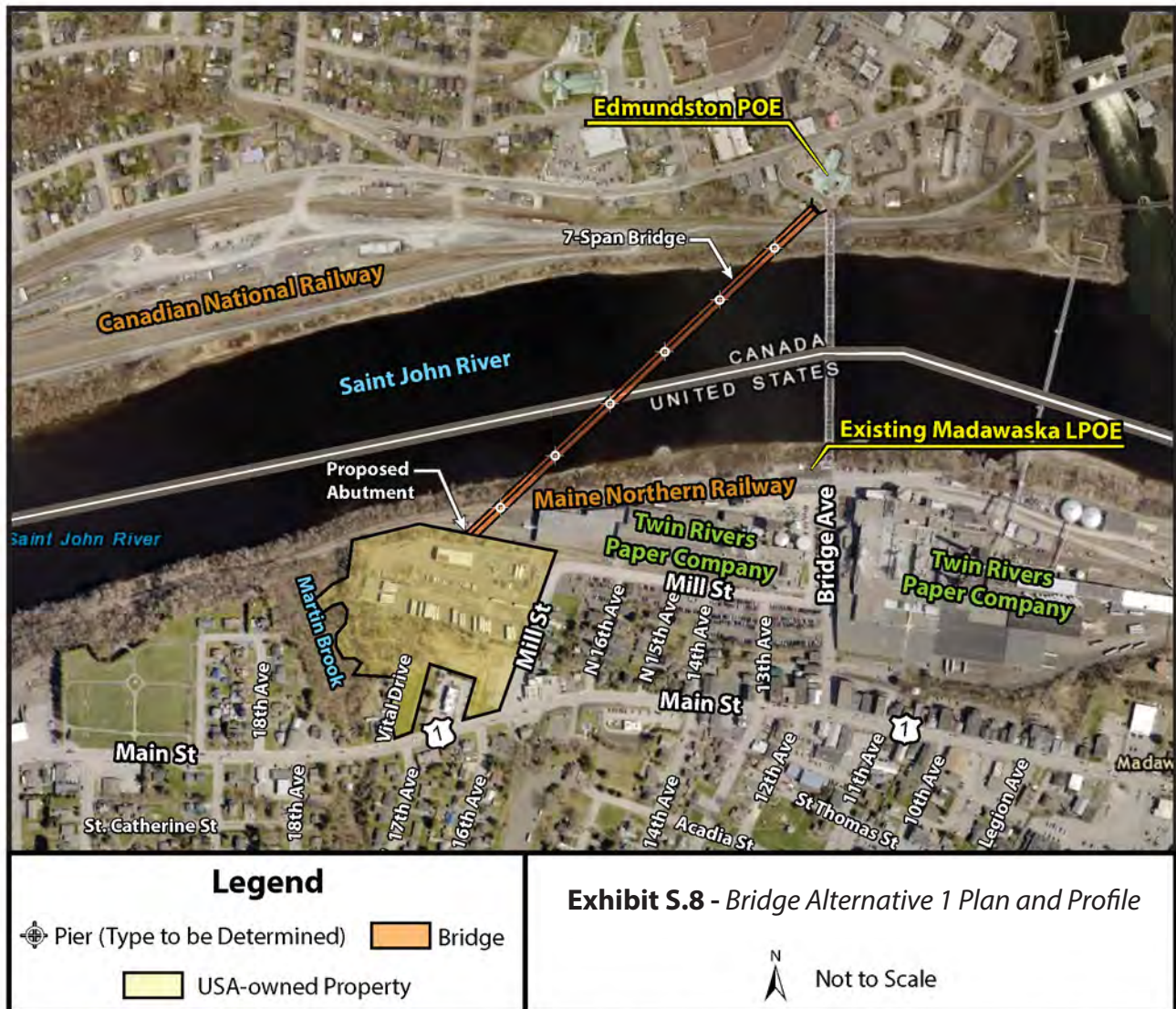
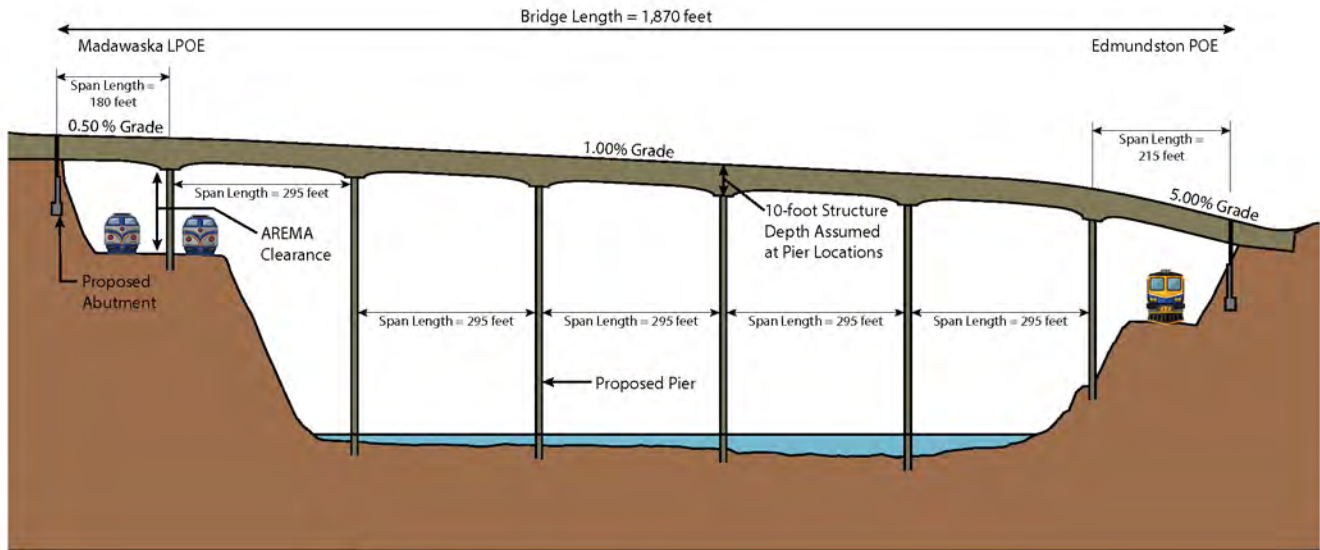
- Access roads along the banks of the Saint John River and a temporary work trestle or rock causeway traversing portions of the river would be necessary to complete construction of the piers and portions of the superstructure.

a. **Bridge Alternative 1: Cast-in-place Segmental Concrete Bridge with Five Spans**
 Bridge Alternative 1 consists of the construction of a cast-in-place segmental concrete bridge with five spans (Exhibit S.8). Bridge Alternative 1 is approximately 1,870 feet in length with two 320-foot spans at either end and three 410-foot interior spans. Of the four piers needed, one would be on the bank of the Saint John River in Madawaska, two would be in the Saint John River, and one would be near the bottom of the riverbank in Edmundston.

The vertical profile for Bridge Alternative 1 is governed by the required clearance over the MNR and CNR rail lines and the need to tie into the new Madawaska LPOE and the existing Edmundston POE.

Bridge Alternative 1 was eliminated from further study. Although Bridge Alternative 1 would have one less pier in the Saint John River, the piers to support the bridge would be wider than those with Bridge Alternative 2, increasing the risks for ice jamming in the river. While Bridge Alternative 1 would have similar construction impacts and comparable costs (both construction and long-term operation and maintenance) to Bridge Alternative 2, Bridge Alternative 1 would take approximately six months longer to construct than Bridge Alternative 2.

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b. Bridge Alternative 2: Steel Plate Girder Bridge with Six Spans

Bridge Alternative 2 consists of the construction of a steel girder bridge with six spans (Exhibit S.9). Bridge Alternative 2 is approximately 1,840 feet in length with two 260-foot spans at either end and four 330-foot interior spans. Of the five piers needed, one would be near the top of the riverbank in Madawaska, three piers would be in the river, and one would be near the bottom of the riverbank in Edmundston.

The vertical profile for Bridge Alternative 2 is governed by the required clearance over the CNR rail lines and the need to tie into the new Madawaska LPOE and the existing Edmundston POE.

Bridge Alternative 2 was identified as the Preferred Bridge Alternative.

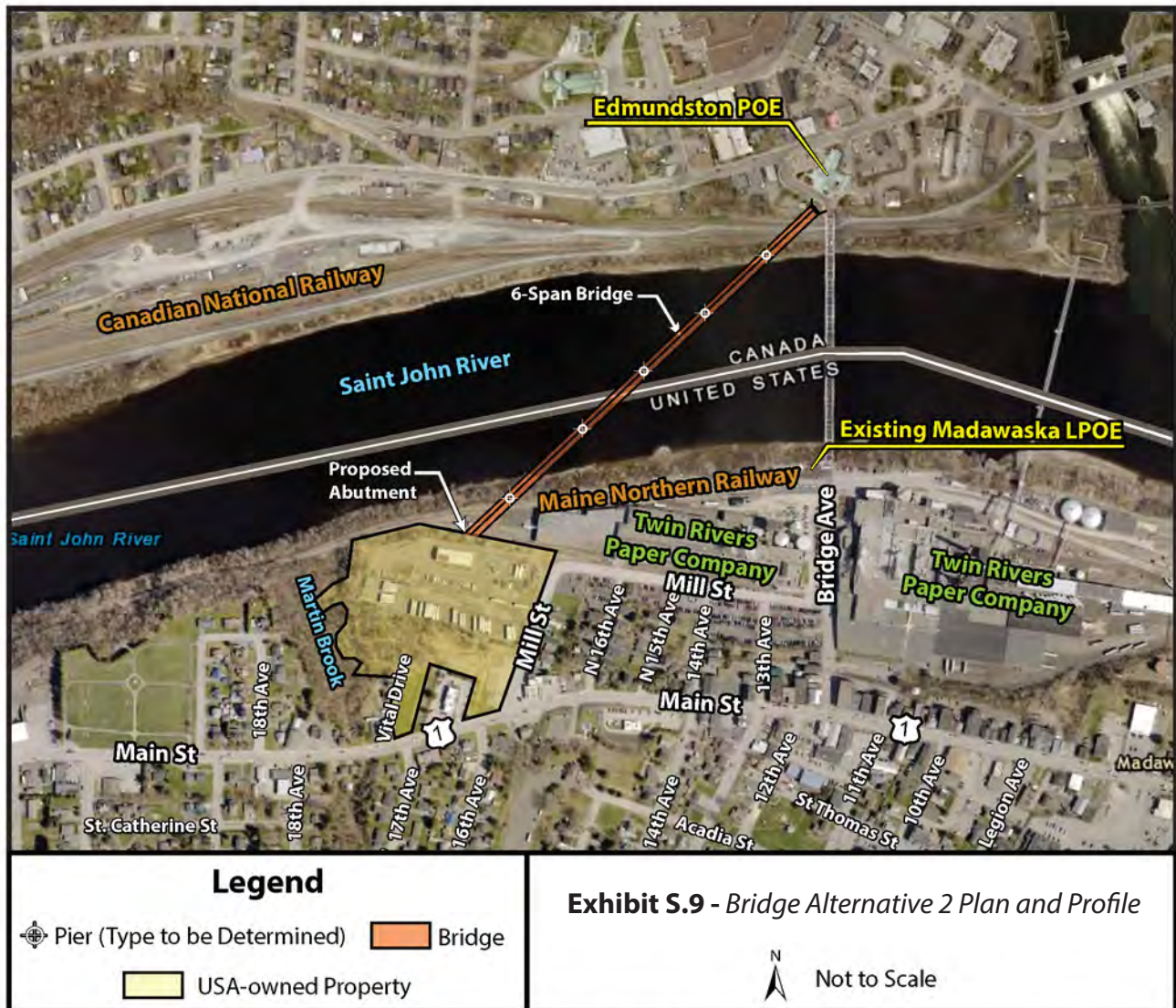
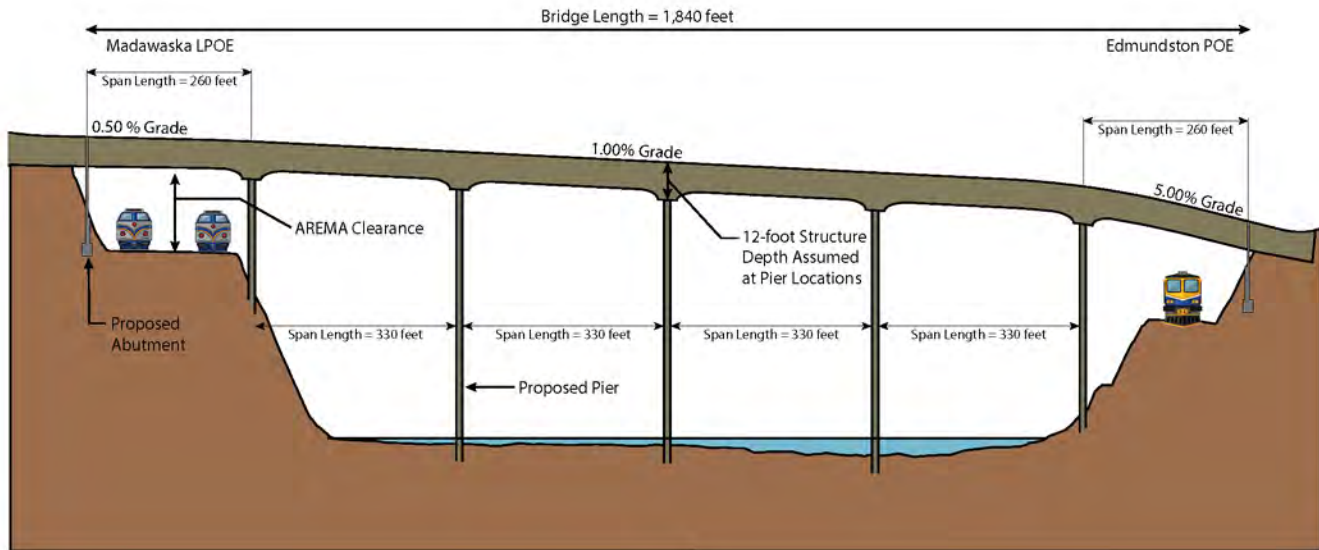
c. Bridge Alternative 3: Steel Plate Girder Bridge with Seven Spans

Bridge Alternative 3 consists of the construction of a steel girder bridge with seven spans (Exhibit S.10). Bridge Alternative 3 is similar to Bridge Alternative 2 but has an additional pier and span to reduce span lengths, reduce girder depths, and generally improve the shipment and erection of the steel girders. Bridge Alternative 3 is approximately 1,870 feet in length with a span of 180 feet connecting to the new Madawaska LPOE, a span of 215 feet connecting to the Edmundston POE, and five 295-foot interior spans. Of the six piers needed, one would be positioned between the MNR railroad tracks in Madawaska, four piers would be in the river, and one would be on the riverbank in Edmundston.

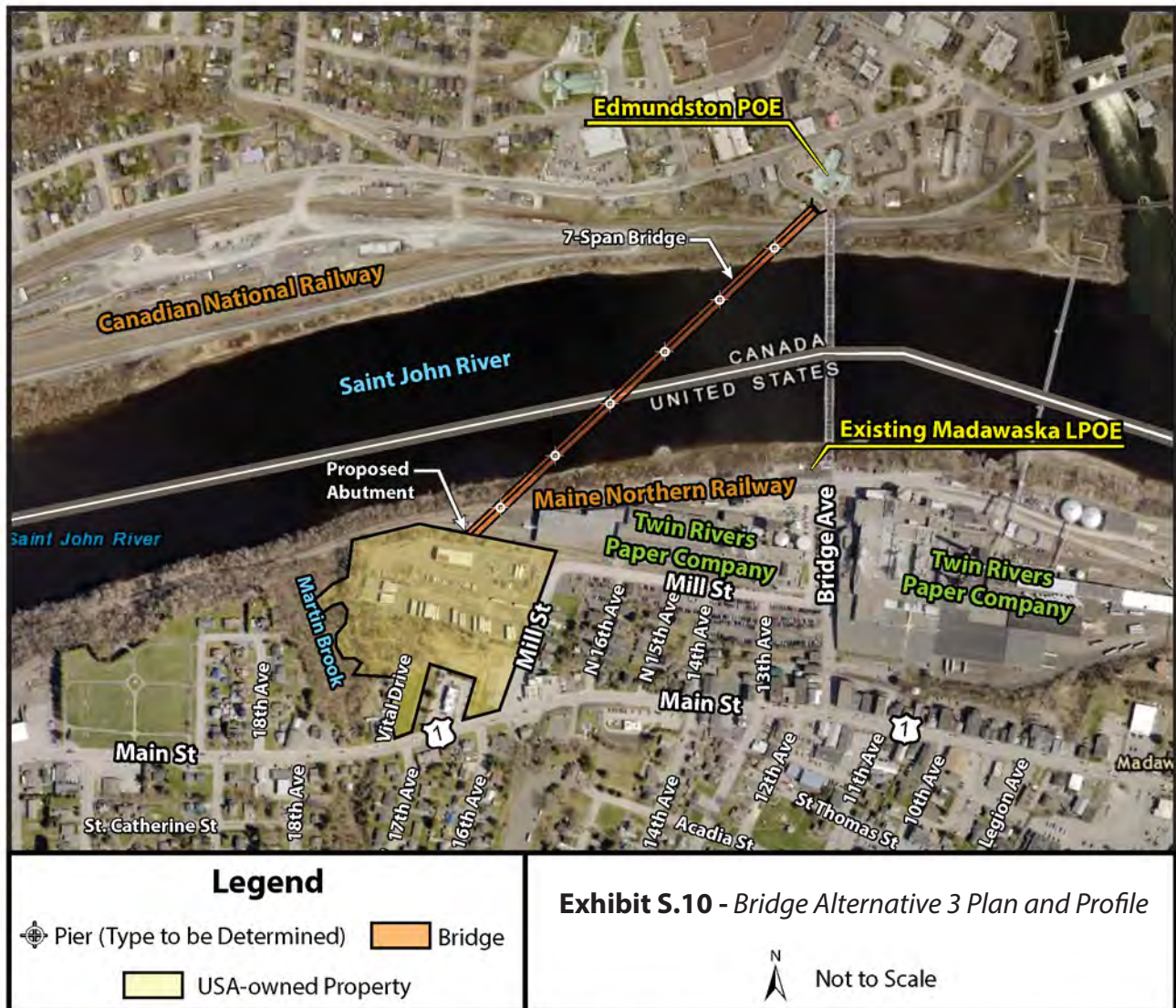
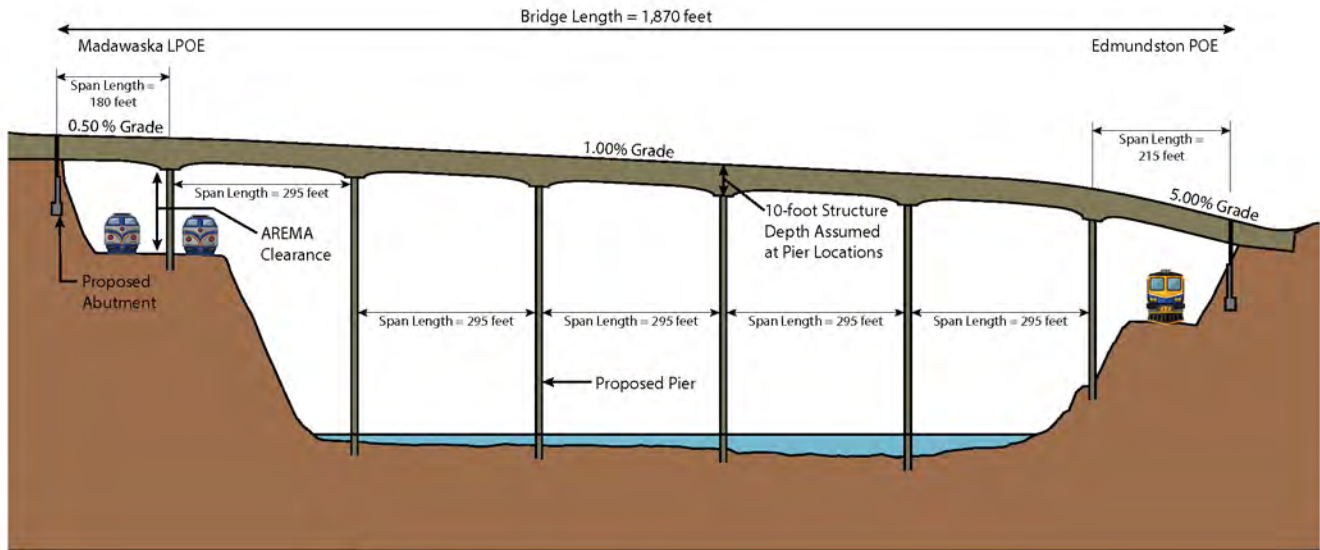
The vertical profile for Bridge Alternative 3 is governed by the required clearance over the CNR rail lines and the need to tie into the new Madawaska LPOE and the existing Edmundston POE.

Bridge Alternative 3 was eliminated from further study because of the cost of construction and the long-term maintenance and construction challenges with a pier between the MNR tracks in Madawaska.

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C. The Preferred Alternative

1. Madawaska Land Port of Entry

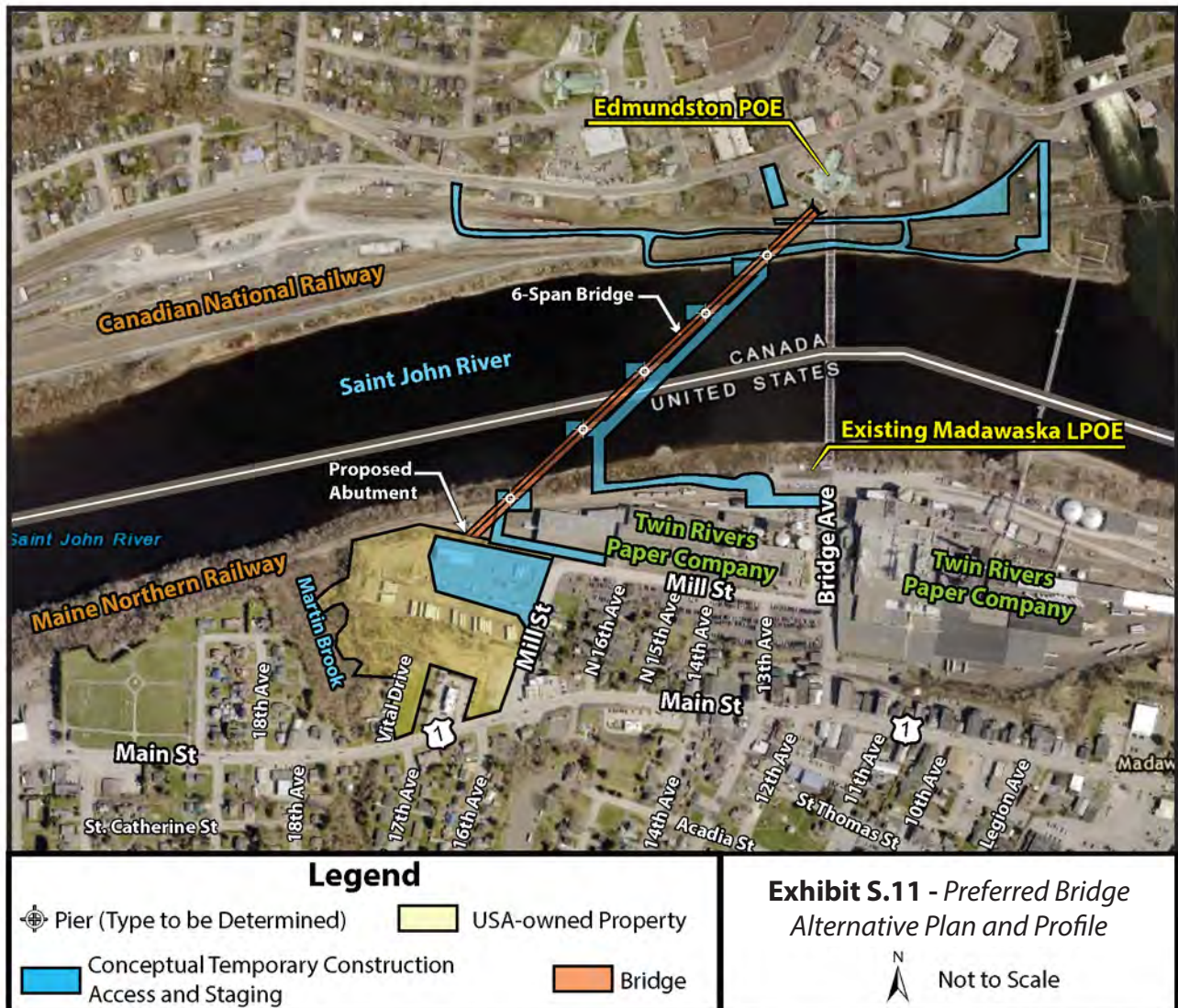
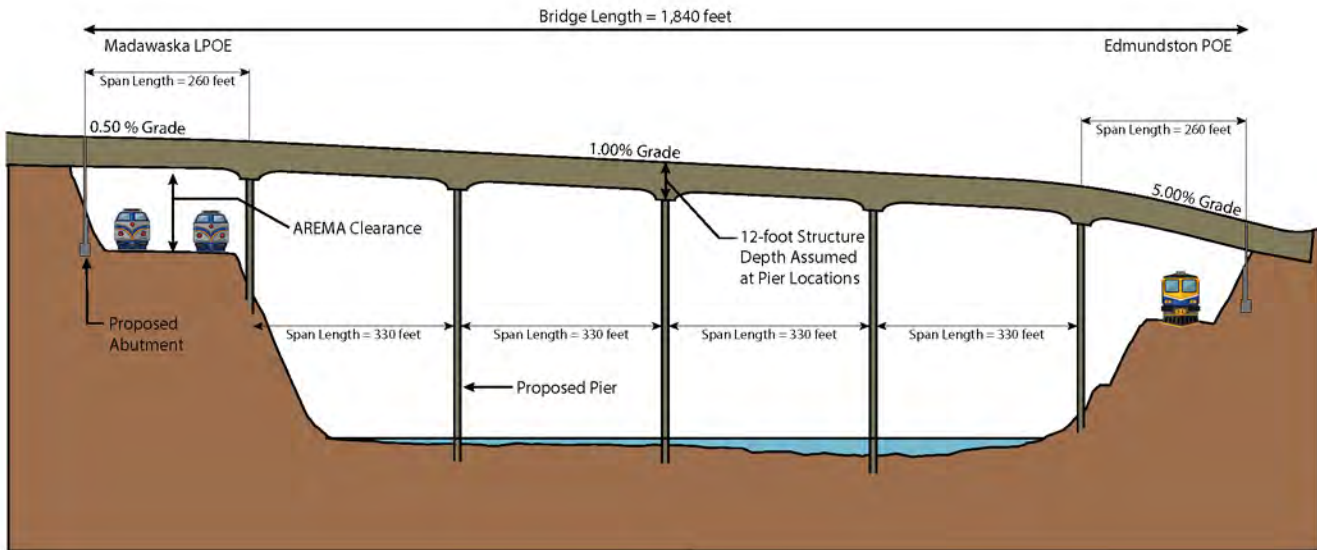
Following the circulation of the DSEIS, LPOE Alternative C was identified as the Preferred LPOE Alternative (Exhibit S.6). LPOE Alternative C was identified as the Preferred LPOE Alternative because it furthers the purpose of the project and satisfies the needs for the project. The Preferred LPOE Alternative:

- Provides enough space for safe and efficient flow of traffic through the LPOE;
- Provides enough space for the operations of the LPOE to function efficiently;
- Meets MaineDOT's access management guidelines and the entrance and exit to the LPOE would be approved by MaineDOT;
- Provides a safer location and distance between the outbound and inbound driveways;
- Provides enough open space to accommodate the necessary length of road to descend from the bridge landing elevation (538) to the elevation of Mill Street (520) without a steep road grade, and provides safer maintenance and circulation in winter conditions;
- Provides increased line of sight, safety and security for CBP personnel to carry out their mission and operations;
- Allows inbound and outbound driveways to connect to Mill Street, eliminating the need for B-trains to use Main Street; and
- Provides enough space for seasonal snow storage and future expansion (MPdL Studio, 2018).

The Preferred Alternative for the LPOE would require the acquisition of additional private property and cause the displacement of residents and a business. The Preferred Alternative for the LPOE would require the acquisition of the McDonald's property and three properties on Vital Drive, one of which is owner-occupied. GSA will acquire the private properties in accordance with the Uniform Relocation Assistance and Real Property Acquisition Policies for Federal and Federally Assisted Programs Act (the Uniform Act). The GSA will offer relocation assistance services, payments, and other eligible benefits in accordance with the policies and provisions in the Uniform Act. However, the GSA has no authority to require McDonald's, or any other displaced party, to relocate within the Town of Madawaska.

2. International Bridge

Following the circulation of the DSEIS, Bridge Alternative 2 was identified as the Preferred Bridge Alternative (Exhibit S.11). Bridge Alternative 2 was identified as the Preferred Bridge Alternative because it furthers the purpose of the project and satisfies the needs for the project. Bridge Alternative 2 is within the corridor for the preferred alternative and uses the maximum number of piers that could be constructed in the river for a worst-case analysis of potential environmental impacts.



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Bridge Alternative 2 was identified as the Preferred Bridge Alternative because, although it would have one more pier in the Saint John River, the piers to support the bridge would be smaller than those with Bridge Alternative 1, decreasing the risks for ice jamming in the river. While Bridge Alternative 2 would have similar construction impacts and comparable costs (both construction and long-term operation and maintenance) to Bridge Alternative 1, Bridge Alternative 2 would take approximately six months less time to construct than Bridge Alternative 1.

D. Affected Environment and Environmental Consequences

LPOE Alternative A would not require the acquisition of private property.

LPOE Alternative B and the Preferred LPOE Alternative would require the acquisition of private property along Main Street and Vital Drive. They both require the acquisition of the McDonald's property, and three Vital Drive properties, one of which is an owner-occupied residence.

The LPOE Alternatives A and B and the Preferred LPOE Alternative would impact approximately 2.6 acres of deciduous trees and shrubs near Martin Brook and the Saint John River. The increased impervious area and stormwater would be addressed during final design to help reduce erosion and sedimentation caused by construction.

Bridge Alternatives 1 and 3 and the Preferred Bridge Alternative would adversely impact the Saint John River, bedrock geology, and aquatic habitat and fisheries due to the construction of bridge piers within the river. Under Alternative 1, two piers would be constructed within the Saint John River. Under Alternative 3, four piers would be constructed within the Saint John River. Under the Preferred Bridge Alternative, three piers would be constructed within the Saint John River. The size of the piers would be determined during final design.

Under Bridge Alternatives 1 and 3 and the Preferred Bridge Alternative, the existing International Bridge would be removed. The removal of the existing International Bridge and piers from the Saint John River would result in a positive impact to the Saint John River.

Bridge Alternatives 1 and 3 and the Preferred Bridge Alternative would result in an adverse effect to the International Bridge which is eligible for listing on the National Register of Historic Places. Under these alternatives, a new bridge would be constructed, and the existing International Bridge would be demolished. A memorandum of agreement has been prepared between the FHWA, MaineDOT, the Advisory Council on Historic Preservation, and Maine Historic Preservation Commission (representing the Maine State Historic Preservation Office) to document the mitigation measures for the adverse effect. To mitigate the adverse effects to the International Bridge, the following measures were stipulated in the MOA:

New Bridge Design Review Process

MaineDOT will consult with the Maine SHPO and the consulting parties on the final design of the new bridge. MaineDOT will provide the SHPO and the consulting parties, for their review and comments, details on aesthetic bridge design features, including public space, viewing, railing and lighting options to ensure compatibility with existing historic features. The information will be provided at 60% and 90% relevant design documents via email and posted on the MaineDOT International Bridge web page. The SHPO and consulting parties will have 30 calendar days to review and provide any comments to MaineDOT.

Historic American Engineering Recordation

MaineDOT will provide recordation of the International Bridge (#2399) in consultation with the National Park Service and in accordance with Historic American Engineering Record (HAER) Level 1 Standards which include Guide to Written Reports for the Historic American Engineering Record (HAER) and the Guide to Preparing HABS/HAER Photographic Documentation (2008, updated December 2017; and 2011, updated June 2015, respectively). Documentation will be prepared by a 36 CFR 61 qualified architectural historian. All materials submitted as documentation will follow the requirements stated by the Heritage Documentation Program and the National Park Service Northeast Regional Office's schedule of documentation. The Maine SHPO will be provided an opportunity of 45 days to review and comment on one draft before the HAER is submitted to the National Park Service to be archived. The Maine SHPO may request a second round of review. National Park Service approval of the completed documentation is required prior to any alteration or demolition of the International Bridge.

Adaptive Reuse or Reuse of Portions of the International Bridge

Prior to dismantling, MaineDOT and the FHWA will offer the International Bridge or a portion of the bridge to any group that could legally take possession of the bridge and maintain it at a new location, provided the group assumes all future legal and financial liability. Costs to induce acceptance of the offer of donation may not exceed the cost to dismantle the bridge. FHWA, the Maine State Historic Preservation Officer and MaineDOT will work jointly to determine the most appropriate use of the existing bridge from any proposals received. If no offers are received for adaptive reuse, then a portion and/or feature of the International Bridge will be retained and offered to the Town of Madawaska and the City of Edmundston. MaineDOT will offer the bridge for adaptive reuse within 60 days after issuance of the ROD which is anticipated in Fall 2019. If no offers are received MaineDOT will coordinate with the Town of Madawaska and the City of Edmundston, New Brunswick on portions of the bridge beginning approximately one month after the offer is published.

The LPOE Alternatives A and B, the Preferred LPOE Alternative, Bridge Alternatives 1 and 3, and the Preferred Bridge Alternative would result in a variety of positive impacts to the flow of traffic. As part of the construction of the LPOE, the portions of

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Mill Street and Main Street adjacent to the LPOE may be reconstructed or reprofiled to provide smooth ingress and egress to the LPOE.

LPOE Alternatives A and B, the Preferred LPOE Alternative, Bridge Alternatives 1 and 3, and the Preferred Bridge Alternative would have a beneficial impact on community cohesion between Madawaska and Edmundston by improving the ease of travel between the two communities. Emergency service providers for the Town of Madawaska and the City of Edmundston would be able to travel across the new bridge in response to emergencies, in fulfillment of their mutual aid emergency service agreement.

LPOE Alternatives A and B, the Preferred LPOE Alternative, Bridge Alternatives 1 and 3, and the Preferred Bridge Alternative would change the visual appearance of the downtown business zone.

There are no other major actions proposed by other government agencies in the study area.

E. Circulation of DSEIS and Summary of Comments Received

Under the Council on Environmental Quality's (CEQ's) regulations implementing NEPA (40 CFR Part 1503.1), an agency that publishes a draft environmental impact statement (DEIS) is required to:

- Obtain the comments of federal agencies with jurisdiction by law or special expertise, and
- Request comments from:
 - » Agencies at all levels of government authorized to develop and enforce environmental standards;
 - » Indian tribes, when the effects may be on a reservation;
 - » An agency that has requested EISs on actions of the kind proposed; and
 - » The public, including actively soliciting comments from those persons or organizations that may be interested or affected.

Comments received can range from statements of support for, or opposition to, an agency's proposed action to detailed critiques of the EIS's analyses and suggestions for new alternatives. Comments might identify factual errors, omissions, areas of controversy, and provide new information to be considered in the analysis of alternatives and prior to decision-making.

An agency's focus in preparing the FSEIS is the consideration of and responses to these comments. The comment-response process includes all steps from receipt and consideration of comments through the preparation of responses and any needed revisions to the EIS. An agency cannot complete the NEPA process until it has

considered and responded to substantive comments on the DSEIS. The comment-response process is intended to help make better and more informed decisions.

The GSA, FHWA, and MaineDOT announced the availability of the *New Madawaska Land Port of Entry and International Bridge Project DSEIS* on December 3, 2018 (Federal Register, Vol. 83, No. 232). A 45-day comment period immediately followed, during which GSA invited federal, state, and local agencies, organizations, and individuals to submit comments on the DSEIS. The comment period on the *New Madawaska U.S. LPOE and International Bridge Project DSEIS* closed on January 31, 2019.

An open house and a public hearing on the DSEIS were held during the 45-day public comment period. The purposes of the open house were to: 1) meet with people with an interest in the study to answer questions about the study, and 2) receive suggestions for further avoidance and minimization of potential impacts of the project and ways to improve the analysis of alternatives prior to decision-making. The purpose of the public hearing was for the public to offer comments on the DSEIS prior to preparation of the FSEIS and decision-making. The open house and public hearing were held on December 12, 2018 at the Madawaska High School and a transcript of the hearing was prepared. Twelve attendees offered substantive comments during the public hearing or immediately following its conclusion.

F. Areas of Controversy

There are no areas of controversy regarding this project.

G. Issues to be Resolved

Issues to be resolved on this project consist of:

- Timing for the relocation of Twin Rivers' utility lines to facilitate the demolition of the existing International Bridge.